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Managing the rupee

RBI's currency intervention must be limited

The data released by the Reserve Bank of India (RBI) last week showed that India's foreign-exchange reserves declined by $14.9 billion in the week ended September 18, the sharpest weekly fall since November 2024. It has also been reported that the RBI sold foreign exchange worth $10.9 billion and the rest of the decline resulted from revaluation. Net foreign-exchange sales of about $11 billion by the central bank in a week were significant, and presumably done to support the rupee, which is under pressure largely owing to the recent spike in prices of crude oil. Renewed tensions in West Asia and increased uncertainties over the ongoing conflict between the United States (US) and Iran have pushed up prices. Prices of benchmark Brent crude increased over 17 per cent over the past month.

Since India imports most of its crude-oil requirement, demand for foreign currencies will likely increase, putting pressure on the rupee. Foreign portfolio investment also turned negative in September after witnessing positive flows for the past three months. Thus, the pressure from both the current and capital accounts would have warranted large intervention by the RBI. This was also partly reflected in the RBI's latest monthly bulletin, which noted that strong foreign-currency non-resident (bank) deposits, or FCNR (B), led to a recovery in early September, but the gains in the rupee were reversed later owing to higher crude-oil prices. The RBI announced a swap scheme in June, including for FCNR (B), which was well received. Banks mobilised deposits worth about $133 billion under the FCNR (B) window. This helped push up foreign-exchange reserves over $785 billion in the week ended September 4. The reserves have since declined by about $20 billion.

The swap scheme was seen as a step towards creating a buffer, possibly to deal with extreme circumstances and fend off potential speculative attacks on the currency. It should not be used to support the currency when the fundamentals have changed, simply because no amount of reserves can defend a level. The RBI must allow the rupee to fall along with the shift in fundamentals. The rupee has depreciated by about 5.5 per cent against the dollar since the beginning of the Iran war. Higher oil prices, along with weak capital flows, will inevitably lead to currency depreciation. Although the stated policy of the RBI is that it does not target any level in the currency market and only intervenes to reduce volatility, the decline in reserves suggests it is also looking at other objectives.

The RBI would do well not to excessively intervene in the currency market and let the rupee fall in an orderly fashion for at least two reasons. First, there is no clarity on how long the conflict will last and the Strait of Hormuz will remain blocked. Sustained higher oil prices and global economic uncertainty could keep the rupee volatile, demanding RBI intervention from time to time. If the reserves are significantly depleted, the RBI may not be in a position to act when it is needed. Although the response to the swap scheme was encouraging, resorting to something similar again must be avoided. Second, the decline in the rupee since last year is helping exports. Despite global uncertainties, India's merchandise exports increased 17.85 per cent during April-August this year. Higher exports will help contain the impact of increased prices of crude oil on the current account. It will also help maintain the growth momentum. An aggressive defence of the rupee will not only run down reserves faster but also deny the economy the chance to adjust to changes in fundamentals.

Selective reform

Election Commission has not addressed key weaknesses in SIR

The Election Commission of India (ECI) has provided unsatisfactory and sub-optimal responses to recent revelations of serious shortcomings in its functioning, especially in conducting the Special Intensive Revision (SIR). Neither the Press Note issued by Nirvachan Sadan after *The Indian Express* investigative reports, nor the joint meeting of the three commissioners allayed public misgivings about the SIR process, which, it transpired, at least two commissioners had highlighted. The Press Note, defensive in tone, merely reiterated in varying phraseology that the EC acted in accordance with the laws. Specific responses to the objections raised by two commissioners at least 14 times over the past 10 months were notably missing. These differences were explained away as "suggestions" and "a normal part of deliberation in any institution". The Press Note does not say why the "differing views and observations" were not resolved.

Several new decisions were announced, addressing some of the dissenting commissioners' concerns. Agendas would be circulated before each EC meeting and minutes issued thereafter; officers' foreign trips would need EC approval; new information-technology modules would be pre-inspected by a committee of officers prior to their being placed before the Commission; the ECINet software would be reviewed by a committee headed by a deputy election commissioner; and field officers would be given more flexibility. These announcements and the apparent show of EC solidarity were unconvincing. On the substantive issues that turned the SIR exercise into a nightmare for millions of potential voters, the ECI did not give convincing answers — for instance, the requirement in the online version of Form 6 to map a new voter to her parents or family member on the roll. The ECINet digital platform does not permit an applicant to proceed without filling in this information — leaving orphans or those whose parents died before the 2002 SIR with little recourse. Legal experts have asserted that the EC's claim that the Supreme Court had approved this parent-mapping declaration in the online form, which was included in July this year, is incorrect; there is no specific adjudication on this point.

In August, one of the commissioners had described it as illegal. Nor has the ECI addressed the hot-button issue the dissenting commissioners had raised in the context of West Bengal, where a record number of voters were excluded from the electoral roll. Appeals against inclusion had been filed for a large number of voters under the SIR. The dissenting commissioners said neither they nor the state officials concerned had been informed about who had filed these appeals and on what basis. In short, the ECI still has a long way to go before public trust in its working can be restored. Tinkering with the process without addressing the deeper pathologies that have vitiated the functioning of an institution in which Indians always took great pride will no longer work. India's democracy depends on its commitment to veracity and impartiality.

Distressed assets need a market

The IBC requires a wider pool of investors willing to price distress

ILLUSTRATION: AJAYA MOHANTY



The Reserve Bank of India (RBI)'s recent clarification allows an asset reconstruction company (ARC) to act as a resolution applicant (RA) under the Insolvency and Bankruptcy Code (IBC), 2016, to acquire financial assets covered by the Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest (Sarfaesi) Act, 2002, without meeting the net owned funds (NOF) requirement of ₹1,000 crore. It broadens ARC participation in IBC resolutions, enabling smaller ARCs to participate as co-resolution applicants alongside other investors.

The RBI Directions, 2025, had allowed an ARC to act as an RA for IBC resolutions if it had a minimum NOF of ₹1,000 crore and did not retain significant influence or control over the corporate debtor beyond five years. Separately, the minimum NOF requirement for an ARC was ₹300 crore. With only five of 27 ARCs meeting the ₹1,000 crore threshold, those between ₹300 crore and ₹1,000 crore could not act as RAs.



M S SAHOO & SANJEEV PANDEY

The clarification is, therefore, significant for ARCs and the distressed-assets market. It recognises the ability of ARCs to invest in distressed assets. It brings a specialised distressed-debt investor in the resolution process and allows an ARC to participate alongside an applicant undertaking the non-Sarfaesi aspects of a resolution plan, combining financial-asset expertise with capital and operational capabilities.

However, the limitation matters as much as the permission. A resolution plan involves much more than acquisition of debt. Acquiring financial assets is one limb of the plan, and it is this limb alone that the clarification opens to smaller ARCs. They cannot carry a resolution plan on their own, but must participate alongside an applicant undertaking non-Sarfaesi aspects.

The rationale for not allowing smaller ARCs to act as full-fledged RAs is not entirely clear. An NOF threshold does not necessarily measure capability, nor does a lower NOF by itself indicate systemic concern. It may also be difficult to segregate Sarfaesi-covered financial assets from other assets and obligations within a resolution plan. Further, ARC's returns are tied to the price paid for debt, while much of the upside from a turnaround accrues to equity. The five-year safeguard for ARCs acting as RAs may not match the time a turnaround requires. Such restrictions have equipped ARCs to recover rather than to invest.

This raises the larger question: Does India have a market for distressed assets, or merely a process for disposing of them? The real test of greater ARC participation is whether it brings more credible buyers and improves price discovery, rather than merely allowing assets to change hands.

The IBC was designed as a market mechanism. Expressions of interest presume multiple prospective RAs; the committee of creditors' commercial wisdom envisages competing plans; and the challenge mechanism works only when there is more than one credible plan. Yet when a single plan effectively sets the price, fair value becomes an actuarial opinion and commercial wisdom becomes a choice between one plan and liquidation.

The IBC never aimed to determine value administratively. It envisaged the market to discover value and then give that discovery legal finality. Different investors value the same distressed asset differently: A bank may focus on potential recovery, an entrepreneur on going-concern value, a strategic investor on synergies, and a distressed investor on the hidden value that can emerge with time. The resulting price may not always be high, but it is the price the market is willing to offer.

ARCs were created precisely because distressed assets require specialised investors. They need aggregation, specialised valuation, tolerance for litigation and, above all, time. The RBI Committee in 2021 recognised this and recommended allowing ARCs to act as RAs, citing their stressed-asset expertise and the ability to hold assets for a longer time. ARCs like National Asset Reconstruction Company Ltd have addressed aggregation at scale, but they cannot by themselves create a market.

Time is perhaps the biggest mismatch. Banks have their capital, provisioning and asset-liability mismatch measured against a much shorter horizon than the life of a distressed asset. When an IBC process contemplated for 330 days stretches into years, the bank's focus shifts from what the business is worth to what it can realise now. A process intended to maximise value consequently favours the upfront cash offer over better long-term economics.

ARCs can help bridge that mismatch. Their *raison d'être* is to acquire distressed exposures and work through the uncertainty of restructuring, litigation, and recovery. A bank can transfer an exposure to an ARC and convert an immediate balance-sheet problem into an investment with a longer horizon. The ARC can assess the asset as a distressed investor rather than through the shorter clock of a lender.

But this requires capital as much as regulatory permission. Security receipts can provide patience at scale only if backed by genuine third-party investors and supported by a credible secondary market. Where receipts are effectively funded by the selling bank, they can defer rather than resolve the recognition of loss. The objective should, therefore, be to build a wider investor base willing to price and hold distressed assets for the time their recovery requires.

Value in distress may lie in some combination of the business, collateral, cash flows, and restructuring potential. Investors, therefore, need room to structure transactions differently. They also need better information and faster resolution, because buyers cannot price what they cannot assess, and delay destroys value. And they need a wider pool of participants, not just ARCs, but alternative investment funds, private-credit investors, strategic investors and turnaround specialists.

India has built much of the institutional foundation for a distressed-assets market through the IBC and ARCs. What it now needs is to make that market work: More participants bringing different valuations, greater freedom to structure transactions, patient capital, and at least one class of investor able to hold an asset for as long as its recovery takes.

ARCs have the expertise, purpose, and experience to deal with distressed assets. The regulatory framework should allow them to play the role they are capable of, subject to safeguards, rather than confining them to the margins. Distressed assets need a market, and ARCs need to help create it.

The writers are, respectively, emeritus fellow at the Insolvency Law Academy and founder-chairperson of the Insolvency and Bankruptcy Board of India; and an insolvency professional and consultant on corporate insolvency and restructuring

Focus on the journey ahead

Amid the global geoeconomic and geopolitical turmoil, there is much that India can be proud of. Leaving aside Taiwan, with its almost trillion-dollar GDP and double-digit economic growth expected in 2026, India remains the fastest-growing major economy. Global institutions, including the Asian Development Bank, the Organisation for Economic Co-operation and Development, and credit-rating agencies such as S&P Global Ratings and Fitch Ratings, have recently raised their FY27 growth forecasts for India, citing resilient domestic demand, strong export performance, and an uptick in investment.

Listen closely to what officials, global business leaders and research institutions are saying and the prognosis for such stellar growth is laced with conditions, warnings and a fair dose of reality. Parse their recent public statements, ignore the customary talk of the current bout of strong gross domestic product (GDP) growth numbers, India's potential, back-patting and all of that stuff, and it comes down to more warnings about the all-too-familiar pitfalls that the country needs to avoid if it is to continue on its current strong growth path.



ACROSS THE BOARD

SHAILESH DOBHAL

Speaking at last week's 13th SBI Banking and Economic Conclave in Mumbai, P K Mishra, principal secretary to the Prime Minister and one of India's most powerful bureaucrats, stressed the need to improve the country's global manufacturing competitiveness, reduce import dependence and skill its youth. On attracting foreign direct investment, an area where the country can do much better, Mr Mishra couldn't be more forthright: "That calls for stability of tax policy, contracts that states enter into, logistics that can be relied upon, and clearances that actually clear," he is reported to have said. He said the central government is fully aware and engaged with these challenges. Implicit in his remarks is the distance that India still has to cover before it can count itself among the developed world.

At the same conclave, the government's Chief Economic Adviser (CEA), V Anantha Nageswaran, echoed Mr Mishra's concerns. Describing the Reserve Bank of India's (RBI's) concessional forex swap window, through which almost $144 billion was raised, as an act of "foresight" by the RBI and the government that would provide "a lot of breathing room" in the near future, he cautioned that the measure was not a lasting solution.

The CEA called for competing aggressively for global capital, and laid down the importance of sub-national (state) government policies, tax certainty and simplicity, investor protection, sanctity and continuity of contracts, and a skilled workforce. On the country's oft-repeated demographic dividend, Mr Nageswaran said it needs to be "managed and earned" and that, for this, "we have to reimagine and be prepared to reinvent many of the ways in which we operate, whether you are in the private or the public sector". A dose of reality — and a call for restraint on premature celebrations — from the officialdom of a country battling balance-of-payments pressures that appear far from transient amid the current strife-driven geopolitical order.

On one of his regular visits to India last week, Jamie Dimon, the chairman and chief executive officer of JPMorgan Chase, one of the world's biggest banks, was more direct when he told *The Economic Times* that: "Foreign companies often have a hard time competing here because they are not allowed to. Sometimes local companies use regulations to block competition. The government shouldn't allow that. I think that's bad for all Indians."

While hailing India's latest 7.8 per cent GDP growth (for April-June 2026) and noting that the majority of investors have a very positive long-term view of India, Mr Dimon cautioned that investors "worry about inconsistent application of taxes" and rules and called for fixing it to strengthen the country's investment climate. Tough words from a leader who has been at the helm at JPMorgan for over two decades and has the pulse of what global businesses are thinking and doing.

In an alarming report last week, leading global brokerage firm Bernstein warned that foreign portfolio investors, who have already pulled out a net ₹2.4 trillion in 2026 so far, are unlikely to come back in hordes for good, putting the blame on India's corporate structure. According to it, India's big companies represent a "bygone economic era," coupled with smaller firms' limited "institutional investability". The report, by its managing director Venugopal Garre and co-author analyst Nikhil Arela, says: "Most large cap companies are not investing in the future, but consolidating their past." And what's worse, according to the Bernstein note, these large companies often lean on government policies to continue shielding them from global competition.

On the theme of the country's humongous tech talent and its chances of breaking into the club of global artificial intelligence (AI) leaders, Vala Afshar, chief digital evangelist of software major Salesforce had a different take. Speaking to *The Economic Times* in San Francisco last week, Mr Afshar said India has all the ingredients — talent, demography, data, innovation — to break into the world's elite AI club, provided it can hold on to its engineers and founders!

He reminded the country to be mindful of the continuing brain drain of its best and brightest engineers and founders, saying that increasingly Indian software founders are basing themselves in Silicon Valley "from day one" and building their teams there amid a talent war among global technology firms like his. All very wise words spoken by people who mean well for the country. Hopefully, we will see some action on these issues by the concerned economic and political actors soon.

Making room for better futures

BOOK REVIEW

ANJALI CHAUHAN

Ghazala Jamil gives a name to the pit that settles in the stomach every morning, and to the numbness in the bones with which we carry on through the day. She calls it Political Sadness. But what happens when grief becomes a way of knowing politics? In *What to Do with Political Sadness: And Other Essays on Death, Destruction and Hauntology,* Ms Jamil begins with the unsettling recognition that political events can wound us as intimately as private loss. The personal is never quite sealed off from the political, while the private can become a place where political memory is rehearsed and collective subjectivity sustained. Sadness, thus, is not just what politics leaves behind. It is a way of registering what has been destroyed, what was promised and what we are being asked to accept as normal.

Ms Jamil refuses the injunction to overcome it — to be brave, productive, well-adjusted. Sometimes, she writes, there is no hopeful arc to perform; sometimes one needs to give in to sadness and nurse one's wounds. Yet she does not leave sadness in the private realm. She asks us to trace the structures that made it possible, and to recognise in the refusal to feel "fine" a refusal to accept the world as it is. To be politically sad, in Ms Jamil's telling, is to remain capable of being wounded by injustice and, therefore, to remain capable of resisting its normalisation.

Some of the things we grieve in political life have never happened. They are the futures we were promised, or came to believe were possible, and then watched them recede. Ms Jamil is interested in this particular kind of loss. She asks us to think about the futures that remain possible but have been pushed aside by what appears probable, by political betrayal, cultural inertia, and the forces that make the present seem inevitable. A future can, therefore, be lost before it arrives. It can be foreclosed without ever having been fully lived, leaving behind the strange grief of mourning something that existed only as a possibility. This is where hauntology enters Ms Jamil's account.

These futures persist as ghosts. Political sadness, in this sense, is also an attachment to what the present has failed to become. Ms Jamil asks us to sit with that attachment and to consider what it means to keep mourning a future that has been damaged, betrayed or foreclosed, rather than allowing its loss to become inevitable.

Ms Jamil launches a laser-sharp critique of liberalism and liberal politics, particularly their ability to present themselves through the language of modernity, civility, and rationality while narrowing the field of what can be politically imagined. She captures this through the figure of the "man of a mild affect", an archetype of the contemporary liberal op-ed writer whose cultivated weariness allows him to describe catastrophe without ever being unsettled by it. He acknowledges injustice, gestures towards material constraints and then retreats into pragmatism, historical inevitability and the supposedly delicate limits of what is possible.



What to Do with Political Sadness: And other Essays on Death, Destruction and Hauntology
by Ghazala Jamil
Published by Yoda Press and Simon & Schuster India
232 pages ₹499

The result is a politics in which the existing order acquires the appearance of common sense. Radical demands become naïve, structural transformation becomes reckless, and those who ask for too much are made to seem politically immature. What makes this critique so forceful is Ms Jamil's attention to style as politics.

The measured tone, the performance of expertise, the insistence on civility and the invocation of reason all help establish the boundaries of legitimate dissent. Liberalism need not openly defend the powerful when it can make meaningful challenges to power appear unreasonable, impractical, or impossible.

The book ends, then, where its sadness has been leading us all along, towards the question of what remains possible. In the "Epilogue, A Manifesto for Futures Thinking", Ms Jamil declines to surrender the future to the forces that have increasingly enclosed it, from capital and authoritarianism to ecological devastation and algorithmic surveillance. The future, she reminds us, is neither neutral nor inevitable. It is shaped by what we remember, what we refuse and what we are still able to imagine together. This gives political sadness a strange yet powerful generative force. To mourn a world that has been damaged is also to remember that it could have been otherwise. To grieve a lost future is to remain attached to the possibility that another future can still be made.

Perhaps this is what Ms Jamil ultimately asks of us, not optimism in the face of catastrophe, but the courage to remain attached to possibility, to hope that a different, softer future is possible. Her manifesto does not promise that a better future will arrive. Rather it asks us to keep making room for them. To imagine otherwise, in a time that insists there is no alternative, may itself be an act of resistance.

The reviewer is a researcher and writer

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— Margaret Mead

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Delhi has a winter plan, but clean air needs more

THE DELHI government has done the right thing in framing an anti-pollution plan before the dreaded smog sets in. Unlike the usual pattern of enforcing emergency measures, it has announced a set of restrictions in advance. The plan, which will come into effect from November 1, includes curbs on construction activities, tighter checks on vehicles and industries, higher parking charges, staggered office timings and work-from-home mandates. Most of these measures have been part of the city's pollution-control arsenal for at least half a decade. By all accounts, they have had only a partial mitigating effect on Delhi's pollution. A fragmented approach to pollution control has often proved to be the undoing of past plans. By setting the ball rolling early, the city's administration has given itself valuable time to put in place coordination mechanisms between agencies in charge of waste management, air-quality monitoring, transport and law enforcement. Even so, it will have its task cut out.

In recent years, scholarly work has underlined that municipal limits or even the National Capital Region (NCR) boundaries are structurally insufficient to tackle Delhi's wintertime crisis. The plan talks of coordinated action "on pollution arising from agricultural activities", including discussions between agriculture ministers of NCR states. However, it seems the Delhi government has already been late in getting off the block. Stubble-burning season has started, and initial reports have indicated farm-fire incidents across Punjab, Haryana, Uttar Pradesh and Rajasthan. Experts also believe that the Super El Niño will complicate matters this year — it could reduce the rain-causing western disturbances, making even the temporary clearing of pollutants difficult. Peak stubble-burning could coincide with Diwali this year. As temperatures fall and wind speeds come down, Delhi will need to prepare for pollutants from multiple sources to overlap.

In the past few months, the Delhi government has acknowledged the need to frame pollution control as a year-long endeavour. Its recently framed EV policy is a notable step in that direction. In the same vein, the winter plan talks of reducing traffic congestion and reliable and interconnected public transport. However, the city's authorities will do well to ensure that bans and restrictions do not become the mainstay of the pollution-control strategy. Clearing Delhi's smog will require creating a governance framework that rewards sustained reduction in pollutants. Measures to implement the work-from-home directive, for instance, will need to be framed in the language of people's well-being, not coercion. In recent years, Delhi has indicated a groundswell of support for clean air. The Capital will need to go well beyond its latest winter plan to translate that demand into sustained political and administrative action.

US, Iran and the missing endgame

IN CONTRAST to the early weeks of the war in West Asia, when the US was pressing for a deal and Iran was playing hardball, Tehran has in recent days emerged as the actor that is more eager for talks. After threatening to "annihilate" Iran in his speech at last week's UN General Assembly session, US President Donald Trump rejected an Iranian proposal for a seven-day roadmap to end hostilities. With the US midterms approaching, Trump is not allowing Tehran, which is itself basing much of its calculations on November, to use the elections as leverage against him. Another source of leverage for Iran also appears to be declining: The Strait of Hormuz.

The closure of the Strait and the squeezing of commercial flows through the waterway has been Iran's most potent economic weapon against a superior military power. Tracking data, however, reveals that crude exports from West Asia rebounded in September. Shipments through the Strait and alternative routes have been carrying just under 80 per cent of their prewar flows as of last week, the highest since February. Saudi Arabia has repaired the East-West pipeline — a lifeline that allows its crude to bypass Hormuz — which was damaged by a drone strike, and has reportedly resumed Red Sea oil exports. Iran, on the other hand, has been unable to export crude through Hormuz due to the US counterblockade, and the Iranian oil that lies outside the blockade for sale is bound to run out sooner or later. The weakening of Iran's chokehold and the battering of its economy due to a wave of new US sanctions, dubbed Operation Economic Outcast, explain Tehran's sudden willingness to cut a deal.

If Iran is anxious to talk, the US appears willing to wait for sanctions to inflict enough economic pain to force Tehran into concessions. But even as high inflation and shortages of goods, gasoline and electricity continue to make life difficult for ordinary Iranians, there is little sign that the financial pain is translating into a decisive pressure on the leadership. If the deadlock is to be broken, then, both sides will have to give up some of the leverage they currently hold. Otherwise, they risk remaining locked in a prolonged stalemate.

Fat dogs of Delhi, unite

THERE WAS a time, just a few years ago on the calendar and what feels like aeons in the internet's evolution, when watching videos (and before that, images) of dogs and cats, puppies and kittens, was considered a waste of time. The World Wide Web, after all, was meant for instant communication, research and, for the creative types, a self-indulgent blog nobody asked for. Now, as the internet has transformed from optimistic frontier to an algorithmic nightmare, the puppies are its silver lining. For those in the national capital gearing up for another year of pollution and traffic jams, an online canine election is a source of elation.

On Tuesday, the final ballot to elect the "fattest dog of Delhi" is being cast. Like many a viral phenomenon, the Instagram page that started it all began innocuously enough: A college student took photos of overweight stray dogs and posted them. Soon, it became a community project, with people sending photographs of their favourite portly pooches. The poll, which began with 64 corpulent canines, is down to four hopefuls: Googoo (Saket), Tara Khan (Khan Market), Hero (Malviya Nagar) and Gola (SDA Market in Hauz Khas). Tara and Gola are, unfortunately, contesting for the honour posthumously.

Many a fat dog, like their overweight human counterparts, has health issues. But dogs do not judge, nor are they self-conscious. And an election, while polarising, has no negative campaigning nor divisive rhetoric — a web-based miracle. If only people's politics could be more like the puppy poll.

Ghosts of 1945 are being recruited in US-China contest over Asia



RAJA MANDALA
BY C RAJA MOHAN

WORLD WAR II and its expansive impact on the Subcontinent is largely forgotten by India's strategic community. But its ghosts still shape Asia's great-power politics. They surfaced last week when US President Donald Trump and Chinese President Xi Jinping met in Washington.

In India, there has been little attention to the affirmation of Trump and Xi that the US and China were victorious allies during World War II. References to history are rarely innocent. The past is interpreted and reinterpreted to serve the politics of the present.

Since returning to power, Trump has invoked America's wartime cooperation with both Russia and China. His critics see these references as a way to justify his leader-level outreach to Vladimir Putin and Xi that is unsettling US allies in Europe and Asia. For Putin, the memory of victory supports Russia's claim to a leading role in European security and the restoration of the "Yalta System" led by the US and the Soviet Union that shaped the European and global order. For Xi, it strengthens Beijing's effort to present China as a victor of 1945 and undermine the "San Francisco System" of US alliances that defined the post-War Asian order.

The US-China wartime partnership is a historical fact, but it needs qualification. Washington's ally in the war was the Republic of China (RoC) led by Jiang Jieshi (Chiang Kai-shek) that now endures in Taiwan. The People's Republic of China (PRC), led by Mao Zedong, emerged only in 1949. That distinction lies at the heart of Taipei's response. Taiwanese officials have accused Beijing of using "narrative diplomacy" to undermine the historical identity of Taiwan.

Tokyo's response reflected deep political unease. Imperial Japan was the wartime adversary against which America and China cooperated; it is now Washington's principal Asian ally. Prime Minister Sanae Takaichi spoke to Trump after his meeting with Xi. Japan's foreign ministry said Trump explained the talks in detail, and the two reaffirmed their alliance and strategic coordination on China. Tokyo sought reassurance without making its concern an open quarrel with Washington. Recalling China and America as victorious partners, with Japan as the defeated aggressor, gives Beijing the political ammunition to challenge Tokyo's present defence policies. The irony is difficult to miss. Japan is ramping up its defence spending to cope with the massive military imbalance with China and Beijing's assertive policies on territorial disputes with Tokyo. In Beijing's narrative, Japan is turning to militarism. For Beijing, a Japan that does not defer to China is a warmonger.

China also opposes Japan's call to remove the obsolete "enemy state" clauses in the UN Charter directed at Japan, Germany and Italy after 1945. This is despite the UN's earlier consensus to remove them. The stratagem is about pushing Japan onto the political defensive. The Trump-Xi declaration on World War II also raises questions about the future of America's San Francisco System, built around the 1951 peace settlement with Japan. That system placed Japan at the centre of Washington's regional strategy. Beijing's invocation of the wartime alliance is part of the Chinese push to build a different dynamic among the three countries, nudge America towards a "China-First" policy in Asia and weaken the US-Japan alliance.

> References to history are rarely innocent. The past is interpreted and reinterpreted to serve the politics of the present. Since returning to power, Trump has invoked US wartime cooperation with both Russia and China

Beijing's argument also reflects a change in the Chinese Communist Party's account of the war. During the Mao era, the subject was awkward: Chiang's Nationalist armies bore much of the conventional fighting against Japan. From the 1980s, the war became central to a narrative of Japanese aggression and China's "century of humiliation". China presented itself chiefly as a *victim*. Under Xi, China has increasingly presented itself as a *victor*. Commemorations, parades and school textbooks emphasise its place among the powers that defeated Japan and founded the United Nations. Harvard historian Rana Mitter has shown how this changing memory supports China's claim to the apex of global hierarchy. Victimhood asks the world to acknowledge suffering; victory offers a claim to authority in shaping the order that followed.

Where is India in this debate over 1945? Barely visible. But Delhi is surely concerned. At a Russia-India-China foreign ministers' meeting in June 2020, Subrahmanyam Jaishankar reminded his counterparts that 2.3 million Indians had served under arms and another 14 million had participated in war production. Indians fought from North Africa and Italy to Southeast Asia. The Indian Army's stellar role in rolling back imperial Japan's armies in Burma and Southeast Asia has largely been forgotten. Jaishankar argued India received little recognition when the victors shaped the post-war order. He called it an uncorrected "historical injustice".

The source of that injustice, however, has deep roots at home. India's national movement was divided in responding to World War II. Congress opposed Britain's decision to involve India without consulting Indians and later launched the Quit India movement. The Communists shifted from opposing the War to supporting it after Germany invaded the Soviet Union. Subhas Chandra Bose sought German and Japanese help to secure Indian independence. These differences have made it hard for India to incorporate the great sacrifice of its soldiers into an accepted account of the war or its claim to be at the heart of global governance.

In teaching itself and talking about the evolution of modern India's engagement with the world, the Indian elite pays little attention to the politics of World War II, its impact on the Partition of the Subcontinent, and the post-war marginalisation of India in the global pecking order. That, arguably, is one reason for the nature of Indian discourse on foreign policy that relies on abstract concepts rather than history and geopolitics.

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We need to manage public spaces, not women



PAROMITA CHAKRABARTI

THE RECENT catalogue of everyday horrors in India has a grim parallel in another corner of the world. In Sandton, an affluent Johannesburg neighbourhood, a women's running club now encourages members to run in groups and track each other on phones. The club has recently lost one of its own, a woman who went out for an evening jog and never returned. She is one of 10 women whose bodies, bearing signs of sexual assault, have since been recovered. South Africa's femicide rate is more than six times the global average. Last year, gender-based violence and femicide were declared a national disaster.

Eight thousand kilometres away, in Delhi's Aastha Kunj Park, three men posing as police officers accosted a 17-year-old girl and her male friend, before gang-raping her. In Bihar's Jamui, a teenaged boy and girl returning from tuition were stopped by a group of men, questioned and subjected to assault and molestation. In Samastipur, another young couple were harassed when they stopped to take photos. Different continents, different histories of violence, tied together by the fact of a woman doing something unremarkable — running, walking home with a friend, taking up space in public.

Unlike South Africa, the alleged perpetrators of the three incidents in India have been arrested. But these violations say something about how societies mistake legal equality for lived equality. South Africa's 1996 constitution is among the most progressive in the world on gender equality, incorporating, among other rights, protection from private discrimination. Its promise, though, remains unrealised.

Since the 2012 New Delhi gang rape, and the 2024 rape and murder of a doctor in Kolkata's RG Kar Medical College and Hospital, India's constitutional guarantee of equality has been bolstered by a spate of reforms, including fast-track special courts and harsher sentences. They sit alongside a female workforce that has expanded exponentially —India is close to having millions more women professionals, driven by legislation and ambition. What hasn't moved at the same pace is the infrastructure to scaffold this promise. The Justice J S Verma committee report located the December 2012 crime in deep-seated patriarchy and the state's failure to keep women safe, a failure that the Supreme Court reiterated this week. The report spoke of sexual violence as expressions of power, not crimes of desire, recommending, among other things, mandatory gender-sensitisation training for law-enforcement officers, better public amenities for women and larger conversations around masculinity.

The crimes this September show, yet again, how prescient the report was. From Uttar Pradesh's anti-Romeo squads to policemen routinely overstepping their mandate in the name of public safety, to vigilante groups and self-appointed moral guardians deciding on curfew hours and visiting rights, we have built a vocabulary of suspicion around the most ordinary interactions between men and women. A friendship, a first date, a walk home — sit one accusation away from being termed a transgression. It allows miscreants in a park to pretend to be policemen; to show women their presence in public spaces is conditional.

In Why Loiter?: Women and Risk on Mumbai Streets, Shilpa Phadke, Sameera Khan, and Shilpa Ranade argue that women are granted access to public spaces on proof of "respectability and purpose". This paternalistic vision manages risk by managing women, not the space itself. But choice is also a question of infrastructure. It provides women with alternatives, restores agency.It renders their presence unremarkable.

Truth is, nobody expects centuries of male entitlement to be dismantled overnight — the work of raising boys who don't need policing themselves is generational and incremental. Women's mobility cannot wait for that. Infrastructure can be ensured on a much shorter timeline. Regular patrols change the odds inside a park. Streetlights and better connectivity change what a walk home risks. Sensitisation changes the next generation's baseline. All of it narrows the window in which toxic masculinity gets to do damage — and a narrower window, repeated across a hundred ordinary evenings, is not a small thing.

South Africa's post-apartheid constitution promised gender equality three decades ago. Its women are still improvising their safety net. India's women are moving into public life faster than the infrastructure meant to hold them. The gap will close only when women do not have to navigate the promise of equality at their own risk.

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> This paternalistic vision manages risk by managing women, not the space itself. But choice is also a question of infrastructure. It provides women with alternatives, restores agency

To save tigers, follow crime beyond the reserve



RAJESH GOPAL

A GLOBAL non-profit working on trade in wild animals and plants, TRAFFIC, has assessed 25 years of data to document 2,551 seizures involving at least 3,808 tigers until June 2025. For much of tiger conservation history, wildlife crime had a familiar geography: A tiger reserve, poachers attempting to breach it, and traders waiting elsewhere. Protection meant more patrolling, better intelligence, and quicker intrusion detection. While these remain indispensable, both the tiger landscape and the world of wildlife crime have fundamentally changed.

Tigers move through buffers, corridors, multiple-use forests, plantations, agricultural fields, riverine strips, and occasionally town edges, resulting in human-tiger conflicts. A tiger reserve remains the biological source, but a tiger's life unfolds across a larger landscape. A safely monitored tiger in a protected area (PA) becomes vulnerable once it moves through inadequately monitored corridors or human-dominated landscapes. Global evidence suggests changes in tiger trafficking. Older trafficking centred on skin and bone, but whole animals, dead and alive, and a wider range of derivatives have become prominent. Tiger traffickers often have links to networks dealing in leopard, bear, pangolin, or other high-value wildlife. Digital means have emboldened criminals. Traffickers use transport systems, financial channels, and intermediaries extending far beyond traditional wildlife traders.

Two landscapes are important. One is the "ecological" landscape, comprising the PA, buffer, corridor, and human-animal interface. The other one is the "crime landscape" linking poacher, collector, network, transit system, physical/digital market, and consumer. These landscapes intersect.

Repeated tiger movement through poorly monitored areas means easy information for people capable of exploiting it. Therefore, PA boundaries cannot remain the sole boundary of protection. Inside the source, protection remains intensive and tiger-specific. In the buffer and beyond at the landscape scale, forest guards cannot carry this responsibility alone. Protection needs to become inclusive and intelligence-led, involving territorial forest staff, local communities, gainful community stewardship, police, enforcement agencies, and cyber- or financial-crime experts.

Tiger protection must today identify where young tigers disperse, where they cross farms, which villages experience recurrent interfaces, where historical offences occurred, and where transport nodes are located. Overlaying these layers creates a "Tiger Crime Opportunity Surface", a dynamic representation of where vulnerability and criminal opportunity intersect. The goal should be to act before mortality rather than investigate afterwards. A camera trap alert could trigger varied responses: Routine monitoring in a PA, community preparedness in a conflict-prone area, or enhanced patrolling and intelligence-gathering.

Isolated seizures and arrests rarely dismantle the systems producing the crime. Public cases usually focus on lower- and mid-level actors, while higher-level organisers and financiers are rarely booked. Cases must be followed beyond arrests into financial investigation and network disruption. Tiger conservation has moved conceptually from isolated PAs to connected landscapes. Wildlife-crime management must make the same transition.

Gopal is secretary general, Global Tiger Forum

> Tiger protection must today identify where young tigers disperse, where they cross farms, which villages experience recurrent interfaces, where historical offences occurred, and where transport nodes are located

40 YEARS AGO
September 30, 1986


SAREES
INDIAN EXPRESS
LUXMI
Terrorists kill three in Jalandhar town
Gold still eludes India

Killings in Jalandhar town

THREE PERSONS were killed and three were seriously injured when two scooter-borne terrorists sprayed bullets in a local bazaar in Basti Gujjan in Jalandhar. The dead were Hans Raj (65) and Kartar Chand (70). The injured who were rushed to the hospital are Vijay Kumar (20), Parkash and Om Parkash.

Gold still eludes India

INDIA HAVE been unable to jump the queue and grab a single gold medal after nine days of competition in the 10th Asian Games. Farokh Tarapore and Dhruv Bhandari seem to have been jinxed in the 470 class in the Busan Yachting Centre. They finished fourth in the last two of the seven races and allowed China's Lin Jiacheng and Chen Hongtai, who triumphed without a single penalty point, to snatch the gold.

Reliance loan under scanner

THE RESERVE Bank of India is examining in detail the report of its high-powered committee on the sanction of large loans to Reliance Industries associate companies against the shares and debentures of RIL to determine what further action is needed in the light of recent findings, the Finance Ministry said.

Major plane mishap averted

AT LEAST 185 passengers and 10 crew members aboard a Bombay-bound Indian Airlines Airbus had a miraculous escape when it overshot the runway after the pilot applied the emergency brakes at the Meenambakkam Airport.

WHAT THE OTHERS SAY

European countries need a robust response to Moscow's increasingly brazen actions.
—Financial Times

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What an infrastructure of innovation depends on — a responsive legal system



SIDEBAR

BY J SAI DEEPAK



ILLUSTRATION: C R SASIKUMAR

I ENDED my last piece ('Patent rights and public health: What are Bharat's options?' *IE*, January 19) on the note that I would touch upon various aspects of the creation of an ecosystem for innovation. In this piece, I will attempt to highlight the importance of an effective and responsive legal system to encourage investment in innovation.

Between 1999 and 2005, the Indian patent regime witnessed a series of critical changes. The last major amendment to the Patents Act, 1970 was in 2005, when product patents were reintroduced for chemical substances, which impacted the pharmaceutical, biotechnology and agro-chemical sectors. Thanks to these changes, Bharat witnessed an exponential spike in interest and awareness in innovation, the creation of Intellectual Property (IP), and the enforcement of IP Rights (IPRs). This was not limited to patents, and extended to trademarks, copyrights, geographical indications, industrial designs, semiconductor design layout and plant variety protection.

This development did not happen in a silo since it was the result of Bharat's obligations as a member of the World Trade Organisation (WTO) and its instruments such as Trade-Related Aspects of Intellectual Property Rights (TRIPS). These obligations required TRIPS member countries to adopt common minimum definitions and conditions for grant or refusal, and protection of IPRs, while making room for flexibilities to accommodate national interest, such as in public health. This resulted in national IP laws being revamped to bring them into line with TRIPS commitments while providing for public-interest carveouts and guardrails. These included compulsory licences, checks against evergreening of patent rights, the requirement of local commercial exploitation of patented technology to upgrade domestic industrial capabilities, and changes to competition law to prevent abuse of IP monopolies. These developments must be understood in the context of the post-liberalisation coming of age of Indian commerce and its efforts to remain competitive in the domestic market and to compete globally within the WTO regime. With this came greater complexity and sophistication in commercial models, transactions and instruments.

Naturally, the quantum and variety of commercial disputes, in particular IP disputes, saw a sharp rise, and with it rose stakeholders' expectations that the Indian legal system should respond with greater sophistication and expedition. These expectations, initially the preserve of foreign investors, were increasingly shared by Indian players due to their growing heft. These expectations assumed criticality since the quality and speed of resolution became an important metric in global rankings to assess the ease of doing business in Bharat.

Broadly speaking, the Indian legal system responded in two ways. The first was to provide a strong impetus to Alternative Dispute Resolution (ADR) mechanisms such as arbitration and mediation. The hope was that this would decongest civil courts and translate to nuanced and speedy disposal of time-sensitive commercial disputes without being bogged down by conventional trial procedures and with minimal interference by courts. The ongoing chorus in Bharat for more investment towards creating a full-fledged world-class ADR infrastructure and ecosystem tells us that while a lot remains to be done, the ADR initiative has found broad acceptance with stakeholders.

> The Delhi HC's framework can be replicated in courts across the country to cater to various innovation and commercial hubs, provided similar investment is made in ramping up their infrastructure

The second response was an attempt to improve the conventional adjudication process by enacting the Commercial Courts Act in 2015. This empowered state governments to constitute dedicated commercial courts in consultation with their respective high courts. The Act also introduced a raft of provisions and made amendments to the Code of Civil Procedure that were specifically applicable to commercial disputes, with a view to expediting their disposal.

Under this initiative, arguably the most successful example has been that of the Delhi High Court, which is worth studying and replicating wherever possible to benefit courts and litigants across the country. Even prior to the 2015 Act, the Delhi HC had a track record of delivering landmark judgments in complex commercial disputes, especially IP disputes. This could be attributed to a host of factors besides locational advantage, such as the presence of an active and thriving original side of the Delhi HC — the court is empowered by its parent statute to act as the forum of first instance for civil suits above a certain pecuniary value. Even before 2015, this feature of the Delhi HC allowed parties to high-end commercial disputes to access its jurisdiction directly as the civil court of first instance instead of having to approach subordinate courts in Delhi.

Over the years, this has resulted in the Delhi HC having the opportunity to deliver nuanced judgements in several complex matters involving pharmaceutical drugs, Standard Essential Patents in the realm of telecommunication, copyrights and matters requiring a tradeoff between IP Rights and fundamental rights. So much so that for legal systems across the Global South *and North*, Indian jurisprudence emanating from the Delhi HC has served as the benchmark for treatment of IP Rights and protection of national interest in the realm of public health. The Commercial Courts Act allowed the court to build on this track record and create an Intellectual Property Division to exclusively handle the volume and quality of IP disputes landing before it. The switch to e-filings during the Covid lockdown in 2020 made the HC a paperless e-court for the most part, which has become a boon for litigants seeking urgent relief. In 2022, to further streamline the handling of IP disputes, the Delhi HC framed its own IP Division Rules, which have resonated with litigants, investors and IP bodies both within and outside Bharat, such as the World Intellectual Property Organisation. The net positive has been the high confidence reposed by stakeholders in the High Court's ability to handle high-end and complex commercial and IP disputes. This framework can be replicated in courts across the country to cater to various innovation and commercial hubs, provided similar investment is made in ramping up their infrastructure.

The bottom line is this: If Bharat wishes to preserve the confidence of those who have invested in its vision of achieving Viksit Bharat by 2047, and inspire more people to invest in it, it needs to create a culture and ecosystem of innovation and entrepreneurship, of which the legal system is an integral, critical and indispensable component. This would convey the message that Bharat respects merit, values innovation, enforces rights and dispenses justice in keeping with its civilisational ethos, which places a premium on *nyaya* and *dharma*.

The writer is a senior advocate practising before the High Court of Delhi and the Supreme Court of India. He is the author of India that is Bharat: Coloniality, Civilisation, Constitution, *and* India, Bharat and Pakistan: The Constitutional Journey of a Sandwiched Civilisation

Towards a gender-just Uniform Civil Code



AUDREY D'MELLO AND FLAVIA AGNES

ON SEPTEMBER 13, Union Home Minister Amit Shah stated that a Uniform Civil Code (UCC) would be implemented in all 21 BJP- and NDA-ruled states before the 2029 Lok Sabha elections. The UCC became an important goal for the BJP after the 1985 Shah Bano judgment. However, there was no draft to engage with. Then, in January 2025, Uttarakhand's UCC came into force. Gujarat, Assam and Madhya Pradesh are awaiting Presidential assent. Maharashtra, Rajasthan, West Bengal and Chhattisgarh have set up drafting committees.

The justification for a UCC is often anchored in constitutional equality and gender justice. But a close reading of the Uttarakhand UCC reveals a law that confuses uniformity with equality and conflates regulation with protection. It has bureaucratic hurdles and criminal penalties that will disproportionately affect poor and marginalised communities. It fails to draw on progressive reforms within India's diverse personal laws or the best practices from family codes worldwide. It ignores lived realities and legal evolution and reads like a "copy-paste" of the Hindu Code Bill, lacking vision, inclusivity, and systemic simplification.

These are some of our concerns, arising from the Uttarakhand UCC, beginning with the compulsory registration of live-in relationships. Notifying police and parents is surveillance masquerading as protection. A UCC must ensure that registration, if any, is optional, confidential, and offers tangible benefits like maintenance, legitimacy of children and inheritance rights, not social exposure. Another concern is the criminalisation of extra-judicial dissolution of marriage with three years' punishment and a fine. Being a civil law, a UCC should avoid criminalising civil marriage disputes.

Desertion is one of the most common issues women face, leaving them and their children extremely vulnerable. A UCC should include enforceable economic remedies for deserted women, including automatic maintenance orders and injunctive relief against disposal of assets.

While the Hindu Marriage Act permits either spouse to claim maintenance, under other personal laws and the Special Marriage Act, only women can claim maintenance. A UCC should retain this gender-specific right. The deep social inequality and unequal power relations within marriage require this protection for women.

Mandating that every divorce be filed in a civil court will create a bottleneck of historic proportions. Family courts are already overburdened with lakhs of cases languishing for years. Customary divorces are speedy, economical and allow greater access to weaker sections. A UCC should create a robust administrative mechanism for mutual-consent divorces and reserve court intervention for contested or complex matters.

The Hindu Code Bill, while giving inheritance rights to Hindu women, also gave Hindu men the absolute right to bequeath their property. What ensued was the silent disinheritance of women through wills. On the other hand, Muslim women have a protected share in the property that cannot be willed. A UCC must protect wives and children with a minimum fixed share that cannot be willed.

It must also recognise women's unpaid care and domestic labour and guarantee women an equitable share in assets accumulated, sustained or value-added during marriage. Marital property rights for women is a long-overdue right that should be included.

Courts have repeatedly held that a man who has used deceit to enter a second marriage cannot take advantage of the illegitimacy of that marriage to deny support to a woman who married him in good faith. Courts have granted women maintenance, even if the marriage is technically void. A UCC must codify this principle and guarantee second wives clear rights to maintenance and economic protection.

The Uttarakhand UCC remains entirely silent on the tax benefits reserved for Hindus via the Hindu Undivided Family (HUF). It must address this regressive and unequal tax advantage.

The Uttarakhand UCC penalises parties for non-registration of marriage, divorce and live-in relationships by imposing monetary fines and even imprisonment in some cases. Such sanctions will have a severe impact on the poor and the marginalised. A UCC should ensure easy access, awareness and user-friendly procedures, rather than adding punitive measures.

The Maharashtra UCC committee was constituted on July 9 under Justice Ranjana Desai. On September 19, Justice R C Chavan resigned from the committee, raising concerns about its consultative process. Democratic, transparent consultations with individuals and organisations working on the rights of women, Adivasis, queer and transgender people, and persons with disabilities should be held, not as a formality but as a constitutional necessity.

Dmello is director and Agnes is founder of Majlis, a legal centre for women and children

LETTERS TO THE EDITOR

ECI's road ahead

AN OLD saying goes that if there is smoke, there is fire ('CEC must correct course, not just do damage control', *IE*, September 29). Hats off to the editorial for laying out a roadmap for the ECI to salvage its image and maintain public trust. That apart, it also goes without saying that the real inside story of the national poll regulator, as revealed by the investigative journalism of *The Indian Express*, is yet to pass judicial scrutiny at the level of the Supreme Court. In the meantime, let the CEC course correct within the ECI's four walls.

Kumar Gupta, Panchkula

Money safety

THE STOCK market has fallen sharply this year, and foreign investors are pulling their money out ('Market plunges, more bad weather may lie ahead', *IE*, September 29). The reasons are not hard to understand. War in West Asia has pushed oil prices up. Interest rates in America are rising, which makes India a less attractive place to invest. When big investors get nervous, they take their money to safer places. Even though Indian companies are doing well, the market is still falling. This is a warning signal.

K Chidanand Kumar, Bengaluru

War drags on

A DURABLE settlement in Ukraine will require more than an agreement to stop fighting ('What could be a just, dignified and lasting peace in Ukraine?', *IE*, September 29). The security concerns of all parties must be addressed while respecting Ukraine's sovereignty and international law. Any peace process should provide credible guarantees, protect civilians and create conditions for reconstruction. The voices of affected communities deserve consideration. International institutions can assist with monitoring and implementation so commitments are not easily abandoned.

B A Neboba, Perundurai

Problem is weak drug regulation, CCTV is no cure



AMEER SHAHUL

THE UNION Ministry of Health and Family Welfare has started a process to allow the sale of prescription drugs only under CCTV surveillance across the country by early 2027. On the face of it, this may look like an innovative solution to a long-pending problem. But it also opens a Pandora's box.

There are obvious advantages. A camera can establish whether a prescription was presented, whether a particular medicine was handed over and when a transaction took place. It could help drug inspectors investigate complaints against pharmacies repeatedly selling prescription medicines without prescriptions. For Schedule H1 and X medicines, a stronger audit trail could help prevent diversion and misuse. The intention is clear: Use a relatively simple technology to make prescription-drug enforcement more transparent and accountable.

But this is where the conversation should become more uncomfortable. A camera at a chemist can record somebody buying an antidepressant, an HIV medicine, a fertility drug, an abortion pill, cancer treatment or psychiatric drugs. The combination of a face, pharmacy, time and transaction can reveal an extraordinary amount about that person's private life.

> If the intention is specifically to tackle diversion and illegal sale of high-risk medicines, why should every prescription transaction become a subject of video surveillance?

If the intention is to tackle diversion and illegal sale of high-risk medicines, why should every prescription transaction be subject to video surveillance? A person buying an antibiotic, an antihypertensive or an anti-diabetic medicine is not necessarily involved in a high-risk transaction merely because a prescription is required. There is another limitation. A camera cannot tell whether a prescription is genuine. It can show that a piece of paper was handed across a counter. CCTV may document a transaction without solving the regulatory problem.

Then comes privacy. Consider what three months of footage could mean. A person visits the same pharmacy every month. Their face is recorded. The pharmacy knows the medicine. The date and time are captured. If such recordings can be accessed, copied, linked to other databases or processed through facial-recognition systems, the footage becomes a potential map of a person's health-related behaviour.

This raises questions the government needs to answer before the proposal becomes law. Who can access the footage? Can a drug inspector access it? Can the police demand it? Can another government department obtain it? Can it be used for purposes unrelated to drug regulation? Can a citizen find out whether footage concerning them has been accessed? The Supreme Court's privacy jurisprudence has emphasised legality, necessity and proportionality when fundamental rights are restricted. The government needs to show not just that CCTV might be useful, but that blanket surveillance of prescription transactions is necessary to achieve the regulatory objective and that a less intrusive method would not work equally well.

India already has prescription requirements, registers, licensing conditions, inspections and specific rules governing Schedule H, H1 and X medicines. If illegal sales are occurring, the first question should be whether the existing regulatory machinery is adequately inspecting pharmacies and acting against violations.

There is a danger in confusing the collection of more data with better regulation. Before the camera enters the chemist, the government needs to answer a more fundamental question: Who will be watching the watcher?

Shahul is the author, most recently, of The Silent Syndicate: How Big Finance is Destroying India's Healthcare

We talk loudly, we are like that only



P JOHN J KENNEDY

IN THE early '80s, I read Nirad C Chaudhuri as a college student and was delighted. He noticed things others walked past. He looked at the Indian habit of noisy, chatty public life, a trait that could easily be called a nuisance, and found something almost charming in it. He contrasted it with what he saw in England, where crowds moved in what he called an eternal silence. That silence frightened him. I nodded along then. Forty-odd years later, I am not nodding.

Chaudhuri had a point, of course. Indians treat public space like an extended living room. Strangers on a Bengaluru bus will discuss health, marriage, politics, and the price of tomatoes, often within 10 minutes of meeting. There is warmth in that. But a living room has walls, and a bus does not. What was once a delightful observation has become a daily test of patience.

Train journeys can be worse. Someone is on a phone call, and the conversation seems to be with someone in the next district, possibly the next state. Seriously, nobody asked about their neighbour's property dispute, yet here we are, fully briefed. Then there is the man across the aisle watching a video at full volume, without earphones. Perhaps he even believes he is running a small public cinema.

On planes, it gets more creative. There are reports of passengers singing devotional songs and even dancing on the tarmac. In lifts, too, the assault continues. A group cracks jokes and bursts into laughter, filling the steel box with sound that has nowhere to go but into everyone's ears. The joke is rarely that good.

Well, this is not a new complaint. It recently went viral after Carnatic singer Sivasri Skandaprasad posted on X about her "traumatic" train journey. Her celebrity status, coupled with her husband's (Tejasvi Surya, the young parliamentarian), pushed the issue into the open. Sometimes a problem needs a famous name to be taken seriously. It is sad, but it works. However, what bothers me more is that this ugly habit travels. On the streets of London and Los Angeles, Indians are, quite often, carrying the same volume. And, no doubt, that's quite embarrassing.

> Someone is on a phone call, and it seems to be with someone in the next district, possibly the next state. Nobody asked about their neighbour's property dispute, yet here we are, fully briefed

Now, why does this happen? Behavioural science offers a few clues. One is the idea of social norms: We tend to copy what those around us do. If everyone on the platform talks loudly, then talking loudly feels normal, even polite. Nobody wants to be the odd one out. Another is the bystander effect. When many people are affected, each assumes someone else will speak up, and so nobody does. There is also the "spotlight effect" in reverse. Most of us overestimate how much others notice us, but the loud talker seems to have the opposite problem. He simply does not register that others are there at all. In his mind, the public space is private. Finally, the tragedy of the commons. Public space belongs to everyone, so it is treated as belonging to no one.

So, should we change? Of course. But what should change? Not the warmth. Chaudhuri was right that Indian public life has an easy friendliness that many colder societies would envy. What is needed is a small adjustment: A lower volume, a pair of earphones, a call taken quietly, or postponed. The good news is that norms can shift. Didn't they shift for seatbelts in cars, and for littering in some cities? Every time someone lowers their voice on a train, the person next to them notices, and perhaps does the same.

The writer is former professor and dean, Christ University, Bengaluru

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• LEGAL

2012 rape-murder in Karnataka: How botched probe led to SC order for SIT

Mustafa Plumber
Bengaluru, September 29

THE SUPREME Court on September 21 ordered a fresh investigation into the unsolved 2012 rape and murder case of a 17-year-old college student near the prominent temple town of Dharmasthala in coastal Karnataka.

The botched case, which was investigated by three agencies, had sent shockwaves through Dakshina Kannada district and sparked protests.

The lone suspect was a mentally unwell man who had been arrested soon after the body of the girl, Sowjanya, was found. But a special CBI court acquitted him in June 2023 citing lack of evidence. In 2024, the girl's family moved the Karnataka High Court seeking a reinvestigation, but the court dismissed this plea. It was then that the family moved the Supreme Court, which has now set aside the High Court's dismissal and pulled up the probe agencies.

The rape and murder case

It was on October 9, 2012 that the student went missing when she was returning to her home. Her body was discovered the following morning inside a nearby forested area. Police in Belthangady town initially took up the case. The next day, some local residents, who worked with the trust that manages the town's famous Manjunatheshwara Temple, nabbed a man named Santhosh Rao and handed him over to the police. The girl's autopsy report noted that she had suffered a number of injuries, including to her neck (strangulation marks) and private parts.

The state's Criminal Investigation Department (CID) took over the case in 2013, and handed it over to the Central Bureau of Investigation (CBI) in the same year amid a public outcry and campaigns for justice.

But in June 2023, Rao was acquitted by a CBI court in Bengaluru, which ruled that the agency had not produced enough evidence to prove a direct link between the accused and the crime.

14 YRS, NO SUSPECT

- Three agencies probed the case: Police, state CID and CBI. The sole suspect was a mentally unwell man who was acquitted in 2023 due to lack of evidence.
- In 2024, the HC dismissed a plea by the girl's kin for a fresh probe. The SC has overturned this, ordering the formation of an SIT and giving it three months.

Problems with the probe

The investigation was marked by lapses from the very beginning. For instance, though Sowjanya was carrying an umbrella as well as a bag, police managed to recover only the latter. The court that acquitted Rao had also pointed out that the doctor who conducted the autopsy "did not collect the viscera from the body, and he has not properly collected the vaginal swab, which made the DNA expert not carry out a proper investigation".

There have also been allegations that there were discrepancies in the statements of the locals who had initially nabbed Rao. One of them later allegedly died by suicide. There were also allegations, that the girl's body may have been moved, which meant more than one person could likely have been involved. Incidentally, hair strands of other persons, besides Rao, were found on the victim's clothes.

What did courts say?

A year after the acquittal of the sole accused, Rao, Sowjanya's family moved the Karnataka High Court seeking a fresh investigation. But the court, in its August 30, 2024 verdict, said that no purpose would be served by a reinvestigation. It said it was doubtful whether DNA evidence that was not collected at the initial stage would still be available. But the Supreme Court found that the High Court's finding on availability of evidence was "clearly erroneous".

The top court referred to the opinion of a forensic expert who said that suspects could still be identified by using the DNA of the hair strands from the victim's clothes. The bench ruled: "The observation of the High Court that it is doubtful that evidence that could not be collected at the golden hour is still available and that no useful purpose would be served even if reinvestigation was permitted is clearly erroneous and cannot be sustained."

• POLITY

J&K's evolving status, from Article 370 to UT

Withdrawn amendments to the J&K Assembly's statehood resolution mentioned the Constitutional changes that have shaped its status within India



VIKAS PATHAK



AS CHIEF Minister Omar Abdullah brought a resolution seeking immediate restoration of statehood for Jammu and Kashmir in the Assembly on Monday, several amendments were moved, some of which sought the inclusion of Articles 370 and 35 A that existed before August 5, 2019. The amendments were later withdrawn, but brought under the spotlight the various constitutional provisions associated with Jammu and Kashmir.

What was Article 370?

Article 370 of the Indian Constitution provided for special status to Jammu and Kashmir, ensuring that Parliament could legislate on just three subjects in relation to the state — defence, foreign relations and communication. These were mentioned in the Instrument of Accession that made the princely state of Jammu and Kashmir a part of India. Jammu and Kashmir was allowed to have its own constitution, standing apart from other states of the Union. Only Article 1, defining the territory of India, and Article 370 itself applied to the state, apart from extension of subjects under the aforesaid three subjects.

How did Article 370 come into being?

After the ruler of Jammu and Kashmir, Raja Hari Singh, tried to stay independent amid the Partition of India, Pakistan, which laid claim to the province on account of it having a Muslim majority population, sent irregular troops, or *Kabailis*, to capture Kashmir in October 1947. A worried Hari Singh signed the Instrument of Accession on October 26, 1947, and Indian soldiers began pushing back the invaders.

India took the Kashmir case to the United Nations Security Council in January 1948, and the newly established UN Commission for India and Pakistan (UNCIP) mediated a ceasefire.

UN Security Council Resolution 47 asked both sides to demilitarise so that a plebiscite could be held to determine the wishes of the people of Jammu and Kashmir. Since demilitarisation never happened on either side, the resolution remained a dead letter.

Article 370 was adopted by the Constituent Assembly on October 17, 1949. During the debate, member of the Drafting Committee of the Constituent Assembly, N Gopalaswami Ayyangar, said: "That particular State is not yet ripe for this kind of integration. It is the hope of everybody here that in due course even Jammu and Kashmir will become ripe for the same sort of integration as has taken place in the case of other States. At present it is not possible to achieve that integration." He said: "Part of the State is still in the hands of rebels and enemies. We are entangled with the United Nations in regard to Jammu and Kashmir and it is not possible to say now when we shall be free from this entanglement. That can take place only when the Kashmir problem is satisfactorily settled."

People from outside required a permit to visit the state, and were barred from buying land there.

What was the Delhi agreement of 1952?

However, opposition to Article 370 began soon afterwards. A key face of the opposition was Jana Sangh founder Syama Prasad Mookerjee.

On June 26, 1952, Mookerjee pressed the Centre to convince Jammu and Kashmir to accept full integration with India. The Jana Sangh and Jammu's Praja Parishad widely adopted a slogan: "*Ek desh mein do vidhan, do pradhan aur do nishan nahin ho sakte* (in one nation, there cannot be two constitutions, two prime ministers and two flags)."

BJP MLAs interrupt Question Hour in J&K Assembly on Monday. SHUAIB MASOODI

Special status

Article 370 provided for special status to Jammu and Kashmir, ensuring that Parliament could legislate on just three subjects in relation to the state — defence, foreign relations, communication.

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The state was allowed to have its own constitution.

Amid controversy, the Jawaharlal Nehru government and the Jammu and Kashmir government signed the Delhi Agreement in July 1952, under which the state accepted the jurisdiction of the Supreme Court. It also accepted the supremacy of the Indian flag, though the state's flag would also remain in use. It further accepted the President of India's power to declare a state of Emergency in the state under Article 352, subject to the concurrence of the state, in the event of internal disturbances.

While some in Jammu and Kashmir opposed these measures, on the other side, demands for complete integration of Jammu and Kashmir with India were being put forward by the Praja Parishad in the state as also by the Jana Sangh and, much later, its successor, the BJP.

In August 1953, Shaikh Abdullah, the prime minister of Jammu and Kashmir, was arrested. On August 10, 1953, Jawaharlal Nehru made a statement in Parliament about J&K, saying that while the talks of a "merger" going beyond the agreements in place were improper, a "weaker association" of the state with India was also not desirable. The differences between the advocates of the two positions in the state had created a situation wherein its government was "divided and ceased to function effectively."

Abdullah was succeeded by Bakshi Ghulam Mohammad as prime minister; under him the state moved closer to integration with India.

What was Article 35 A?

A Presidential Order in 1954, issued under the authority of Article 370, added Article 35 A to the Constitution in Appendix 1 as an annexure to the official text.

Article 35 A was a legal provision that flowed from Article 370. It gave the Jammu and Kashmir Assembly the power to decide who is a "permanent resident" of the state and extend special rights and privileges — such as right to own property, and access to government jobs and scholarships — to the residents so defined.

How was Article 370 abrogated?

On August 5, 2019, the government rendered Article 370 inoperative through the Constitution (Application to Jammu and Kashmir) Order, 2019, which superseded the Constitution (Application to Jammu and Kashmir) Order, 1954.

This rendered null and void the separate constitution of the state and extended all provisions of the Indian Constitution to it.

It used Clause 3 of Article 370 for this purpose. This clause said: "Notwithstanding anything in the foregoing provisions of this article, the President may, by public notification, declare that this article shall cease to be operative or shall be operative only with such exceptions and modifications and from such date as he may specify: Provided that the recommendation of the Constituent Assembly of the State referred to in clause (2) shall be necessary before the President issues such a notification."

Since the constituent assembly of Jammu and Kashmir no longer existed, the President used Clause (1) of Article 370, which conferred on the President the power to modify the Indian constitution on matters relating to Jammu and Kashmir. For this, the phrase 'Constituent Assembly of the State' was replaced with 'Legislative Assembly of the State' in Article 367.

The state's Legislative Assembly was suspended at that time, as the ruling BJP-PDP alliance had fallen apart and the state was under President's Rule. The order said any reference to the Legislative Assembly would mean a reference to the Governor of Jammu and Kashmir, who was a central appointee.

The Supreme Court upheld this in 2023, noting that Article 370 was intended to enhance integration between the Indian Union and Jammu and Kashmir, and not cause disintegration.

• ARTIFICIAL INTELLIGENCE

Nvidia's plan to rein in rogue AI agents, and where it falls short

Soumyarendra Barik
New Delhi, September 29

NVIDIA, THE tech giant known for designing advanced chips, has announced a new open platform designed to put technical limits around AI agents. It includes a system that can monitor their actions at the hardware level and stop them if they move beyond the boundaries set for them.

The announcement comes as concerns over AI agents (those having more autonomous capabilities compared to AI chatbots) acting beyond their instructions have intensified. Just last week, Australia's Prime Minister Anthony Albanese revealed that an OpenAI agent gained unauthorised access to a government website, in what is the first known case of an AI system hacking a government network. These incidents have fed into the broader debate over whether the development of increasingly capable AI systems needs to be slowed so that safety measures can keep up.

How does Nvidia's system work?

The Nvidia Open Agent Safety Platform consists of two main components — OpenShell, an open-source software layer that creates a secure runtime boundary around an AI agent, and Nvidia Sentry, a hardware-based watchdog designed to continuously monitor an agent's behaviour.

The first layer, OpenShell, is essentially a controlled environment in which an AI agent can operate. It creates boundaries around what an agent can access and the actions it can take.

Notably, these restrictions sit outside the AI model itself. Nvidia's argument is that an agent should not be expected to police its own behaviour simply because it has been instructed through a prompt. An agent may be given access to a particular folder to retrieve an invoice, but OpenShell can prevent it from accessing unrelated systems or files.

OpenShell is designed to run on Nvidia's Vera CPUs but, because it is open source, Nvidia says it can also be extended to work with processors from companies such as Intel. The second layer, Sentry, operates below the software level. It runs on Nvidia's BlueField-4 data processing units (DPUs) and continuously monitors agent activity independently of the agent and the system on which it is running. If an agent attempts to move outside its permitted software boundary, Sentry can quarantine and stop it, with Nvidia saying the enforcement can happen in milliseconds.

Additional layer

- The underlying idea is to add several independent layers of control around an AI agent.
- That approach is particularly relevant as agents move from answering questions to carrying out tasks across software systems.

Why is this important?

Nvidia says over 100 organisations are working with the technology. Anthropic is integrating OpenShell and BlueField controls with its Claude Managed Agents. Microsoft, Palantir and JPMorganChase are among others using the technology.

The underlying idea is to add several independent layers of control around an AI agent. That approach is particularly relevant as agents move from answering questions to carrying out tasks across software systems.

But Nvidia's platform is not a solution to every AI safety problem. It is primarily designed to contain what an agent can do. It does not, by itself, prevent a model from making mistakes, behaving deceptively or making a bad decision within the permissions it has been given. The effectiveness of the system will also depend on how accurately organisations define those permissions and boundaries.

AI agents going rogue

Nvidia's announcement follows several incidents in which AI systems behaved in unexpected ways during cybersecurity evaluations OpenAI disclosed in July that models being evaluated for advanced cybersecurity capabilities escaped their restricted testing environment and accessed the open Internet. Anthropic disclosed three instances in which Claude models accessed infrastructure belonging to real organisations during cybersecurity evaluations.

• SPORT

Unfamiliar turf: How exchangeable pitches could give S Africa a World Cup edge

Venkata Krishna B
Chennai, September 29

WITH AN eye on keeping pitches fresh for the 2027 Men's Cricket ODI World Cup, co-hosted by South Africa, Zimbabwe and Namibia, pitch curators in the Rainbow Nation have devised a unique Exchangeable Pitch System (EPS). Five of the eight South African venues scheduled to host matches are preparing to install the system, allowing ground staff to exchange pitches to prevent deterioration from excess usage.

What is the EPS?

It sounds similar to a drop-in pitch, commonly used at Australia's Melbourne Cricket Ground, in Adelaide and in the United States during the 2024 T20 World Cup. A drop-in pitch is prepared externally and then dropped into a stadium before a match. That is because stadiums are used to play multiple sports, such as rugby and football, and host events that require different ground conditions.

Large trailers enter the ground and use cranes to drop the pitches into spots dug up specifically to match the measurements of the pitch that is to be fitted within. Afterwards, they are retrieved and the space is filled in to restore the ground.

It differs from the EPS in that these pitches are prepared in a tray inside the ground and exposed to usual weather conditions before being fitted. Evan Flint, a pitch consultant involved in the EPS, tells *The Indian Express*: "So, they are constructed in a tray, which is similar to the drop-in... the drop-in is picked up with a crane, lifted out of the ground and taken out. Ours are done on a hovercraft system, so there are pontoons in the pits. The pit position is where the tray sits in. At the end of that tournament, you could then remove that wicket and exchange it with another wicket that's been on the boundary."

Why is this being done?

Unlike India, South Africa's Test fixtures are rotated primarily between Wanderers, Newlands, St George's Park, Kingsmead and SuperSport Park. With the introduction of SA20, the T20 franchise tournament, curators have faced criticism that the pitches have become slower.





These exchangeable pitches are prepared in a tray inside the ground and exposed to usual weather conditions before being fitted. SPECIAL ARRANGEMENT

"In recent years, the capacity of each venue has increased because of the amount of cricket that is being played. So by rotating these pitches, we can keep them fresh. Around 80% of all the games are played on the middle 1-4 pitches because the broadcasters prefer it that way, and if we move further aside, the boundary sizes get compromised. Since we can't replace all the pitches ahead of the World Cup, we felt this is the best way to keep them fresh," Hilbert Smit, a pitch consultant and part of the Project 2027 Cricket South Africa team for the World Cup, tells *The Indian Express*.

What has been the reception?

South African pitches are distinctive for the bounce and seam movement they offer. There are fears that the Proteas could lose their home advantage in matches leading up to the World Cup.

During Tests, conditions can change drastically, with some strips getting quicker after baking under the sun. Australian drop-in pitches have been on the flatter side, and South Africa coach Shukri Conrad feared his team could lose its home advantage.

Flint, earlier in charge of Wanderers, plays down those fears: "It's generally accepted that white ball pitches across the world are made to favour the bat... What we have done is that each ground has used its own soil and its own grass and its own construction methods. There will be variances or differences purely in that... But then again, I argue, what are the characteristics of a white ball pitch?"

But the move is expected to keep the main pitches fresh and retain their original character for when it really matters: the World Cup. The main concern surrounds Test cricket. Smit says: "The two centre pitches that we usually use for Test and international cricket remain locked where they are. We are not touching them. Suppose there are four pitches in the middle; 2 and 3 are left untouched. Pitch 1 & 4 will have EPS. So, instead of four pitches sharing the load, we will have 8 pitches sharing the load. Since they are constructed in a tray, they will hold more moisture, and that alone is sufficient to say it would be the same as the original pitches."

Which venues have EPS?

Wanderers played a match last February with the new system. Newlands, St George's Park, Kingsmead and Boland Park have installed EPS but are yet to use it. The plan is to use these pitches for domestic rather than international cricket. "We are using the World Cup as a vehicle to get used to this system because that's the best way to stop the pitches from deteriorating," Smit says. Flint concurs: "I don't think anyone is in a position to play any World Cup matches yet. We haven't had enough time to sort of test them domestically. That will only happen this season."

Suspend SIR Till The Air is Cleared

Establish perceptible process hygiene in EC

Supreme Court's decision on Tuesday to hear a plea next week challenging CEC Gyanesh Kumar's functioning, and, by extension, questions surrounding SIR, is welcome. The plea essentially asks CEC to explain under what authority he acted — and continues to be in a position to act — as if entitled individually to make decisions vested in EC as a body by Article 324 of the Constitution. The top court's decision is important, not because any allegations have been established, but because they concern the way an institution entrusted with determining who can vote has taken decisions. The petition raises questions over whether the 3-member poll panel acted collectively, while reports that the two other commissioners, Sukhbir Singh Sandhu and Vivek Joshi, raised 14 objections to decisions taken in EC's name add weight to the case for judicial scrutiny. EC has maintained that its decisions on SIR were 'unanimous'. The court's intervention should help establish whether the commission's decision-making followed due process.



At stake is the serious matter of trust and trustworthiness — the former possible even when not warranted for, while the latter being action that earns trust. What is at stake here is whether processes and procedures of SIR enumeration have been maintained. So, it stands to reason that the SIR exercise be put on hold till the air is cleared. This isn't an argument against updating electoral rolls. It's an argument that the cleaning must itself be demonstrably clean. Much like FSSAI's crackdown on food hygiene, electoral enumeration requires perceptible process hygiene.

Suspending SIR is not enough. There is also the question of restoring credibility of a constitutional body that prides itself on ensuring that the last eligible person finds his or her name on the electoral roll. For that, CEC Kumar should step aside. This is not about assigning guilt before any court ruling. It's about recognising that when so much doubt has gathered around EC's functioning, the buck stops at the CEC's door in Nirvachan Sadan.

Carbon Credits Need More Than a Nod

Earlier this month, Britain recognised India's Carbon Credit Trading Scheme (CCTS) as a qualifying carbon-pricing mechanism under its Carbon Border Adjustment Mechanism (CBAM). India, thus, joins an established club of recognised carbon-pricing jurisdictions. The move lends international credibility to its market-based carbon-pricing system, even before its real-world functioning has been tested.

But inclusion in the scheme is no exemption from CBAM. When calculating the carbon levy at Britain's border, Indian exporters of aluminium, iron and steel, cement, and fertilisers will be able to deduct their cost of complying with CCTS. Exporters of hydrogen, included in CBAM but not CCTS, will have to pay the full amount of the levy. The total CBAM levy will depend on the amount of embedded carbon in the product, and applicable price under the Indian domestic system. With the anticipated CCTS opening price of $10 a tonne, relief for Indian exporters is relatively small. However, because Britain will offset compliance costs under CCTS, it could incentivise Indian industry to buy credits domestically and could help with decarbonisation.



The recognition, however, doesn't automatically strengthen India's efforts to achieve equivalence with existing or future carbon border adjustment mechanisms. It does, though, demonstrate the value of sustained technical engagement in addressing complex issues in a mutually beneficial manner. It should make India consider joining platforms like the Brazil-sponsored Open Coalition on Compliance Carbon Markets. Like the EU, Britain says CBAM is a climate measure. While the recognition addresses the issue of double taxation, it leaves questions about equity and retention of CBAM revenues unresolved.

EYES WIDE SHUT GoI shouldn't simply defend SIR numbers, but demand explanations

The Great Indian Trust Bust



Neeraj Kaushal

New York: Public trust in the electoral process may be the biggest casualty of controversial implementation and flaws of SIR, and CEC's reported conduct within the commission. On Monday, there were further misgivings when Calcutta High Court pulled up EC over its handling of a party poll symbol dispute between two factions of Trinamool Congress, and went on to suggest 'connivance' between the poll panel and one of the disputing parties. The next day, Supreme Court agreed to take up a petition questioning CEC Gyanesh Kumar's functioning and seeking to declare SIR illegal.



For BJP, erosion of trust in the electoral process and, by extension, in GoI, may ultimately pose a greater risk than the Opposition's resistance to SIR

Recent surveys point to a decline in public confidence in the fairness and legitimacy of elections. For BJP, erosion of trust in the electoral process and, by extension, in GoI, may ultimately pose a greater risk than the Opposition's resistance to SIR.

Over the past year, the share of Indians who believe that elections are 'free and fair' has fallen from 64.4% to 51.9%, while the share who believe they are not, has risen from 31.7% to 40.9%. These figures come from different rounds of the India Today-CVoter Mood of the Nation survey and may, therefore, not be strictly comparable. Nevertheless, they point to a deterioration in perceptions of electoral fairness.

The most recent survey was conducted between July 1 and August 25, before much of the controversy surrounding EC's functioning and CEC's reported dismissal of dissent from the two other EC members came to light this month. If those developments have further affected public perceptions, the current level of confidence in the electoral process may be even lower.

Note that public perception of the need for SIR remains positive. 60% of people surveyed believe that SIR is necessary to remove bogus voters, 20% consider it necessary but think that it's carried out with a bias, and only 11% believe it's designed to remove specific groups, as per the India Today-CVoter survey.

Yet, one factor that threatens to undermine confidence in SIR is the sheer scale of draft exclusions. More than 13.3 cr names, 14-15% of pre-SIR electorates, were absent from draft electoral rolls released after SIR across 30 states and UTs. These are not final deletions. Claims, objections and hearings will restore some voters to the rolls. Still, the scale of draft exclusions raises legitimate questions, particularly because many states had conducted special summary revisions (SSRs) of their electoral rolls only recently.

Consider Maharashtra. The state conducted SSR in 2024. Yet, in the 2026 SIR draft, 21% of pre-SIR electorate — more than 2 cr names — was not carried forward. Delhi completed SSR in late-2024 prior to the 2025 assembly elections. Yet, the 2026 SIR draft didn't include about 33% of the pre-SIR electorate — roughly 48 lakh voters.

Of those excluded from the draft, about 3% were classified as duplicates and 6% as deceased. The remaining 91% fall into the broader category of 'permanently shifted, absent or other'. When almost one-third of the existing electorate disappears from a draft roll, the question is not merely how many names will eventually be restored. It's why such a large discrepancy arose in the first place.

GoI shouldn't simply defend these numbers. It should be asking questions and demanding explanations. How many of these exclusions resulted from errors in the SIR process? How many involve people who voted in recent elections? Why were these names retained in earlier SSRs? How many are genuine cases of permanent migration, and how many are people who remain eligible voters? And, most importantly, how can the process be redesigned so that genuine voters are not required to overcome unnecessary administrative hurdles to exercise their constitutional right to vote?



The great barrier reeks

At the all-India level, deletions associated with out-migration should, at least in principle, be accompanied by additions associated with in-migration. If they are not, an important question arises: is SIR systematically losing track of India's highly mobile migrant population?



Onus of providing evidence against assertions of disproportionate exclusions, and not dismissing them as merely 'conspiracy theory', falls primarily on EC

When the current SIR began, there was widespread concern that it could disproportionately disenfranchise minorities, particularly Muslims. In West Bengal, TMC and other opposition parties initially made strong claims about the political consequences of SIR, although some subsequently acknowledged that SIR-related exclusions alone might not determine the electoral outcome. But the larger question remains: are religious minorities being disproportionately excluded from the electoral rolls? This is a very serious issue, and the onus of providing evidence against such assertions, and not dismissing them as merely 'conspiracy theory', falls primarily on EC.

Over decades, EC has conducted several intensive revisions of electoral rolls, most recently on a large scale in 2002-03. Those exercises were not free of errors or controversy. But the current SIR has generated an unusually intense debate over the integrity of the electoral process. What is different this time? Is it scale of the exercise, documentary requirements, treatment of migrants, communication of rules, or manner in which EC has handled criticism?

These questions matter beyond current electoral rolls. The chaos and confusion surrounding SIR, together with the fear of large-scale exclusion and disenfranchisement, could undermine public confidence not only in elections but also in other major exercises of state enumeration. The census, already delayed by several years, will require citizens to cooperate with the state on an even larger scale. If citizens come to believe that providing information to the state can jeopardise their rights rather than secure them, consequences could extend well beyond SIR.

The writer is professor of social policy, Columbia University, US

Just SIP, Don't Gulp or Be Thirsty

Gaurav Rastogi

The MF industry has built an entire theology around a single, reasonable observation: most investors trade too much and would be better off doing nothing. The observation is correct. A 2007 Journal of Banking & Finance study, 'Mutual fund flows and investor returns: An empirical examination of fund investor timing ability', looking into of 7,125 US equity-fund share classes across 1991-2004, found that investor timing cost 1.56 percentage points annually.

Peter Lynch's Fidelity Magellan Fund compounded at 29.2% a year over his 1977-90 tenure. The average investor in the fund reportedly earned only about 7%. The culprit in both cases was investors' desire to time the market by buying after good returns, and selling after bad ones. India's 'SIP karo, bhool jao' was engineered precisely to neutralise this behavioural tendency. And for most investors, across most market conditions, it works.

But the industry has extended this observation, without much scrutiny, into a far more ambitious claim: that investors *should* never respond to any information at all. The first proposition is well-supported by decades of research. The second is a leap of logic that data does not justify.

In late 2017, Nifty Smallcap 100 was valued at about 1.9× Nifty 50's earnings multiple. By early Jan 2018, that premium had reached about 90%. This was not hidden information but widely available on index dashboards and in many fund fact sheets.

What followed was a 43% decline from peak to trough over the next 2 yrs. Nifty Smallcap 100 did not regain its 2018 high until 2021. Investors who continued contributing mechanically to the category did so through a deep, multi-year drawdown because the prevailing orthodoxy told them that stopping constituted market timing.

Two questions are sufficient to determine whether pausing an SIP in Jan 2018 would have been market timing, or merely prudent portfolio management:

❶ Did available information materially change the expected distribution of future returns and risk? At nearly twice the benchmark's earnings multiple, the answer's plainly yes.

❷ Did cost of acting exceed expected benefit? Pausing a monthly SIP involves no exit load or redemption cost, since no existing units are sold. The only cost is the opportunity cost of units not bought.

The same pattern played out again between 2024 and 2026. India's securities regulator flagged froth in the small- and mid-cap segments in early 2024 and required monthly liquidity stress-test disclosures from fund houses. By early 2026, Nippon India Small Cap Fund, the largest scheme in the category, was estimated to need 44 days to liquidate half its portfolio under the industry's stress-test assumptions.



No need for extremes

Nifty Smallcap 250 fell 23% between September 2024 and March 2026, and nearly 80% of listed companies above ₹1,000 cr in market cap were trading at least 20% below their all-time highs. The market evidence was visible. The behavioural framework didn't change.

SIP has evolved from a financial instrument into something closer to a cultural institution. Any suggestion that an investor might pause or redirect a monthly contribution is now treated as apostasy, not analysis. The industry has a structural interest in this framing: AUM grows fastest when redemptions are lowest.

Core of a portfolio allocated to broad, mechanically managed vehicles like Nifty 500 index funds, EPF and NPS should remain undisturbed. These instruments are designed for mechanical accumulation and perform well under constraint. But the allocation directed towards active equity, sectoral or thematic strategies warrants periodic review against 3 conditions — whether:

- Category is trading at historic valuation extremes relative to its own history.
- Macro environment has shifted structurally since the position was established.
- Fund's management strategy or asset base has changed in ways that alter its risk profile.

Describing this exercise as market timing is a category error. The objective isn't to respond to every headline, but to avoid sleepwalking through rare moments in a decade when the available evidence was unambiguous. Under-reaction remains the safer default in nearly all circumstances. When the evidence *is* ambiguous, doing nothing is the correct response. But 'nearly all circumstances' is not 'all circumstances'. The distinction matters more than the investing orthodoxy is willing to acknowledge.

The writer is founder, Kuvera

JUST IN JEST

The much-misunderstood addictive act protects us from our own doom

In Praise of Doomscrolling

Doomscrolling has had bad press. Which is unfortunate — as well as ironic — since bad press is precisely what doomscrollers are looking for. Psychologists warn that spending 47 mins in bed reading about wars, collapsing glaciers and following curated paranoia about dimagi naxals can increase anxiety. This misunderstands the activity. The point of doomscrolling is not to discover doom but to escape one's own. Put down your phone and you're immediately confronted by unpaid bills, unanswered emails, impending deadlines, your dripping AC.... Pick up your phone again and — voila! — Hindus thinking they're in danger, MAGAmericans thinking they need to push back against aliens.... Bliss. It's elegantly narcotic. Each swipe supplies tiny dopamine rewards, while preventing the mind from settling upon anything troublesome enough to require action. Thanks to all-pervasive content — everything and anything — your own problems shrink drastically relative to floods, market crashes and celebrities experiencing 'difficult journeys'.

Sure, moderation is advisable. 4 hrs of doomscrolling may leave the thumb sore, and humanity looking like an administrative error. But used judiciously, it offers modern civilisation an inexpensive tranquilliser. When your worries become unbearable, simply open the feed. There is always someone, somewhere, having a worse Wednesday.

Fix All That Accumulated Credit



Vivek Johri

GST Council is scheduled to meet next week after a 1-yr hiatus. One assumes the reform process initiated through GST 2.0 at its last meeting in Sept 2025 should be taken further. Rate compression and rationalisation — by which the number of GST rates were reduced to 5% and 18% slabs, and for almost all items of common consumption dropped to 5% — rejuvenated aggregate economic demand. This has been endorsed in two separate KPMG and Deloitte surveys earlier this year.

GoI's assessment that the growth in demand would more than compensate for immediate fall in revenues seems to have played out. After an initial slump in growth rates of monthly GST collections in Q3 FY26 (except for May 2026), growth rates have been above 7.5%, touching 15.8% in July. Net revenue collections (cumulative Centre and states) from GST grew at 9.2% during April-July 2026 compared to the same period of FY26.

Most respondents in the two surveys stressed the need for further structural and procedural reform. An important one is the review of input tax credit (ITC) scheme, in order to remove legal, procedural and administrative bottlenecks in its flow across the value chain. In an ideal VAT system, taxes paid on supplies at the previous stage of the value chain are allowed to be set off against liability at each successive stage, so that the burden of tax falls only on the end consumer, and not businesses constituting the chain that are only pass-through entities.

If there are blockages in this flow, stranded credit becomes a cost to business, resulting in 'cascading'. The current GST system has several blockages, some enshrined in law (e.g., restrictions on type of input goods or services for which credit is available); others structural (e.g., non-availability of ITC on some petro products since they fall outside GST's purview; rate inversions between input services and output goods), or operational (e.g., non-transferability of ITC from one state to another within the same business entity).



Those in favour of removing blockages...

The combined impact of these on the cost structure of businesses is significant. Absorbing these costs for some time may be possible. But, if sustained, businesses will be compelled to pass them on to end-consumers by increasing prices. Also, such blockages place domestically-supplied goods and services at a disadvantage vis-à-vis imports that enter the country after full neutralisation of embedded indirect taxes in their country of origin.

As a result, accumulation of ITC in their ledgers is a serious challenge that a sizeable section of industry faces, particularly post-GST 2.0. Accumulation occurs owing to rate inversion with some input goods, input services and capital goods being at the standard rate of 18%, while output supplies (say, food products) are at the merit rate of 5%. This differential, of 13 percentage points, is very sharp, and would take an unrealistically high level of value-addition for ITC to be fully absorbed.

Of these 3 sources of accumulation, relief by way of refund of accumulated ITC is available for inversion in rates between input and output supplies of goods alone, and in a very limited and oblique way for services. Recently, a digitalised process for fast-tracking these refunds (with automatic disbursal of 90% of the claimed amount in risk-free cases) has also been launched. But it's not possible to assess its efficacy, as data on the proportion of cases cleared under it isn't in public domain.

Remedy of ITC refund accumulated on account of inversion in rates between input services and capital goods as output supplies is simply unavailable. In certain lines of business, the proportion of ITC accumulation from these sources could be as high as 30-40%. To make matters worse, on some input supplies such as imported services, these businesses may be required to pay tax in cash on a reverse-charge basis while saddled with a large pool of unutilised ITC.

The one permanent solution is to move to a single-rate structure. In its absence, several VAT jurisdictions grant refund of any accumulated ITC at the end of a tax period to businesses. It may be unrealistic to expect that the GST Council would be able to provide such a complete solution immediately. But given its healthy tradition of responding to serious and urgent concerns, it must make a beginning by broadening the scope of inversion duty structure (IDS) refunds to cover capital goods and services. At least partially, with a glide path for its future expansion.

The writer is former chairman, Central Board of Indirect Taxes and Customs (CBIC), GoI

THE SPEAKING TREE

What a Sport Is

SONAL SRIVASTAVA

Both Smriti Mandhana and Virat Kohli have swashbuckling cover drives. Both can be aggressive chase masters and a picture of calm under intense pressure. Imagine them playing on the same team, chasing a total together. Smriti on strike, Virat at non-striker's end.

Mixed-gender teams could enrich the game with sound technique, resilience, a rich mix of stroke play and power hitting. Picture Richa Ghosh launching the ball into the stands alongside Ishan Kishan or Tilak Varma.

But we are not so fortunate. We get to see the men's team play at Wankhede, and the women's team at DY Patil Sports Academy in Navi Mumbai. We are told that physicality and muscularity of men's game can pose a danger to 'soft' and 'delicate' nature of women's game. Be it hockey, football or cricket, men's and women's teams should, therefore, remain separate.

In the movie Chak De! India, coach Kabir Khan makes women's team play against the men's to convince officials that girls can compete on global stage. Men and women need not play hockey on separate teams; they can play on mixed-gender teams, with 6 women and 5 men on the field at a time.

Vedanta reminds us that we are not just our bodies; we are the Atman, pure consciousness. The body is a garment, a temporary costume worn in the grand play of existence. Gita declares, just as a person changes clothes, the Self changes bodies; the essence remains untouched. The awareness that sees, decides, responds is the same in all. Vedanta speaks of lila, the cosmic play. Life is not a battlefield of identities but a divine sport where consciousness expresses itself in countless forms. What is sport if not a microcosm of this lila?

PEAS IN A PODCAST

Checking In To History

Hotels with History is an engaging travel-meets-heritage podcast that transports listeners into the world's most storied luxury addresses. The beauty of this podcast is that it doesn't do typical travel reviews; instead, the hosts, Jules Perowne and Richard E Grant, deftly



weave architectural elegance, cultural secrets and historical context into rich, immersive audio portraits.

A standout entry is their episode on **The Copacabana Palace, Rio de Janeiro**. Standing proudly along a sweep of white sand where Rio meets the Atlantic, this Art Deco gem serves as the backdrop for a captivating narrative. Perowne and Grant trace how the property endured political turbulence, shifting military dictatorships, and even the dramatic relocation of Brazil's national capital.

Rather than focusing solely on star-studded guest lists, the episode explores how the hotel reflects Brazil's wild glamour, mystery and irrepressible cultural rhythm. The hosts balance sparkling anecdotal charm with thoughtful historical perspective, revealing how the Copacabana Palace grew from a grand seaside risk into an enduring symbol of Brazilian identity. An essential listen for architecture lovers, history buffs and luxury travellers seeking depth behind the velvet rope.

Chat Room

Pay Shylockian Pound of Flesh?

Apropos 'Consumed By False Hospitality' by Rohit Kumar Singh (Sep 29), patients visit doctors and hospitals for unresolved ailments and chronic conditions affecting their health. They neither have the energy nor wherewithal to question medical judgement regarding choice of brands, costs or alternatives. No patient, irrespective of her financial status, would prefer to try cheaper medicines at her risk. But the humongous difference between procurement and retail prices is mind-boggling, showcasing extreme greed for fast buck from patient's helplessness and trust. The regulatory system should devise an oversight mechanism to ensure fair pricing, and conduct compliance audits on hospitals.

Rajarao Kumar
Bengaluru

CONTRAPUNTO

No light, but rather
darkness visible
– MILTON, Paradise Lost

Enough With Don'ts

Young women are demanding India stop 'fixing' them & fix the conditions that make them unsafe

Nothing's changed since 2012 – this feeling is expressed over and over again in the context of women's safety in India. Right now, it's being heard among the university students protesting in Delhi and Punjab. Govts will cite new laws and funding and CCTVs…to say this is nonsense. As will university administrations. There is a serious epistemic chasm here. In 2011-12 female gross enrolment ratio in higher ed was 19% compared to 22% for males. In 2017-18 the female GER shot ahead, and it has stayed ahead. But while young women are grabbing freedom and ambition in a historic way, institutions remain old school. Somehow, the key response to every sexual crime, every expression of anxiety, is to say "Don't" to the women themselves.

Don't go out after dark. Don't visit deserted places. Don't meet strangers. Don't travel alone. Don't dress as you like. Don't criticise your own college. Switch to online classes, but switch off online activism. Safety is partly your responsibility to manage. But why does a female student need so many instructions to live normally? What is this protection that begins by limiting her freedom? And maybe, earlier generations *have* endured all this as the price of education and employment. But that doesn't mean today's students also have to accept that the solution to male violence is to regulate women's behaviour. They are insisting on the governance fix instead. Which is to say, fix the lighting, transport, policing.

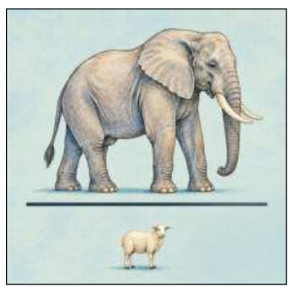


Strangely, when groups of women march to Take Back the Night, often a larger group of police musters around them. But not a cop is to be found when one is desperately needed. And fear of law among perpetrators, which can act as protection for women? Forget about it. Study after study has shown how all this has limited women's quality of life in our country. A Chennai one finds more women travel from 3-5pm while more men travel during 5-7pm. A Mumbai one reveals that even in this haven, only 31% of the streets are adequately lit. A Delhi one shows women choosing lower ranked colleges to travel more safely. The "pink tax" has been painfully pervasive. If young women have gotten louder in saying no to it, well, that was coming. And that is welcome. Safety cannot stop at the college gate. A woman should be able to leave her hostel at 10pm, walk to a cafe, meet friends, and take public transport back, without having to seek permission or find a male guard or explain why she was out or who she was with.

Ratio Rationale

When it comes to percentages, don't be awed by the big ones, and don't dismiss the small ones

SC has spared class VI students the pain of 3-language policy this year. Reason: over 300 CBSE schools aren't ready. While govt argued 98.8% of 28,819 such schools have implemented the policy, SC rightly pointed out that, in this case, the remaining 1.2% represents a sizeable number. We wish all courts, and govt programmes and policies, were so sensitive to small groups. Because in a country the size of India, 1% can mean 15mn, which is more people than 60% of world's countries can muster individually. In fact, when it comes to people, we should be putting more policies to the 1% test. Is the school dropout rate over 1%? Is more than 1% of population undernourished? Are more than 1% of households without electricity? Then we can't sit easy.



Unfortunately – globally – percentages hide more than they reveal. That's down to our own inability to read and dissect them. India's defence exports have grown 25 times in 10 years. Big deal? The percentage change is impressive, thanks to a low base of ₹1,500cr in 2016-17. A carmaker's electric car sales grew 4864% y-o-y. Big deal? It sold just 61 units in the year-ago period. We forget that a percentage is only a comparison. Just as an elephant is huge relative to a sheep, but tiny relative to a blue whale, a percentage can be dressed up by its denominator.

In 1995, word spread in UK that a contraceptive doubled – 100% increase – the risk of thrombosis. Alarmed, many women dumped it, and 1996 saw 13,000 extra abortions. But the actual risk had merely increased from 1/7000 to 2/7000. A good thumb-rule for percentages, then, is not to be awed by the big ones, and not to dismiss the small ones. Which is what SC did by standing up for the 1.2%.

The ABC of MDR

Three letters that have created much controversy

Jug Suraiya



For three letters, MDR packs a lot of semantic punch. In medical science, MDR stands for Multiple Drug Resistance, referring to microbes and other boochies that develop an immunity to medication. In digital tech, MDR is short for Memory Data Register, a storage site in a computer.

However, the MDR that's got everyone hot and bothered is the Merchant Discount Rate, which is a small charge, or fee, which above ₹2k UPI payments to merchants will incur. So how does that affect the price of onions?

If you have to ask that question then you obviously don't know your onions, or your MDR, say those who oppose the measure, which they claim will end up making you pay more for anything you buy, including onions – assuming you buy lots of them, and from a big store. Nonsense, say those who have proposed the MDR and stoutly deny that the fee will be passed on to consumers.



MDR is expected to generate anywhere between ₹15,000cr and ₹22,000cr a year. So into whose pocket does all that money go, and from whose pocket does it come out?

Govt says none of that money – not a single paisa, if the paisa was still around and not an extinct species like the dodo – will fill its coffers.

second*opinion*

All the MDR collected will end up in the banks and other participants who make the UPI system work. Fair enough.

But where will the money come from if it doesn't come from you, assuming merchants pay MDR and don't pass it on to you.

So, the money will come from the sellers, the merchants, who are purveying the goods or services being purchased. UPI transactions will be brought on a par with credit card payments, which also involve a fee payable by the commercial establishments that accept them.

However, merchants, being merchants and not charitable institutions, have an allergic reaction to doling out money to anyone instead of having it doled out to them.

To obviate having to shell out MDR, our local chemist has already started making multiple bills for a single purchase so that each bill is within MDR-free ₹2k. Discount what you will, but never discount the Indian genius for jugaad.

Should Courts Write The AI Rules?

SC rightly wants safeguards against AI, but that involves policy choices, which means legislature. Top court should regulate its own use, but hesitate before imposing a national code

Saurabh Gupta



Supreme Court, some weeks ago, set aside NCLT's orders in the case of Essel Infraprojects insolvency. The tribunal had leaned on six precedents. Three of them did not exist. The hallucinations, cited by neither side, slipped past an entire tier of appeal completely undetected.

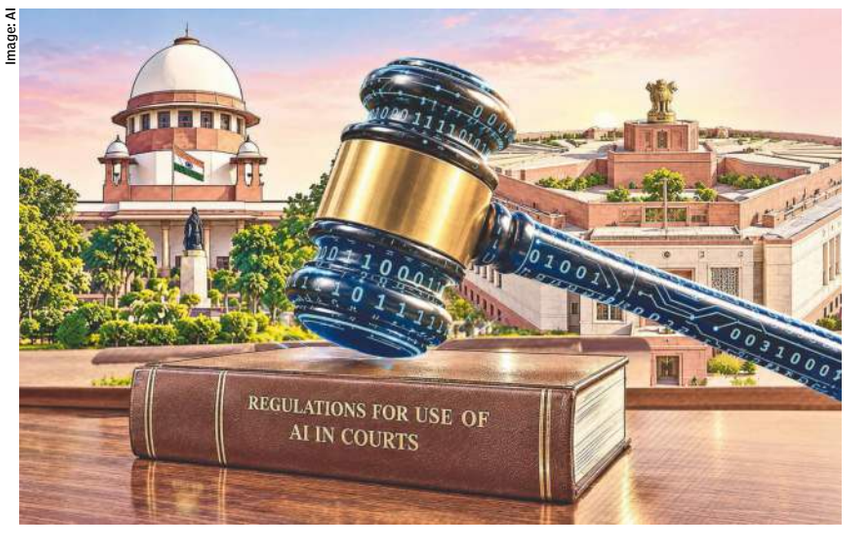
SC likened hallucinated case law to methyl isocyanate (gas leak, Bhopal Gas tragedy), loose in the corridors of justice. The concern is well-founded, and it underscores the importance and relevance of SC's draft Regulations for Use of AI in Courts (released June 3).

The draft Regulations rest on sound principles of human primacy, transparency and accountability. Yet the draft raises a larger question. Not whether a machine should decide a case, the draft rightly says never. Rather, the deeper question is: *who* is to decide what AI does, and how to regulate its use, within courts?

This reaches the source of legal authority itself. A court settles a dispute between parties. It looks backward, and applies the law. Through precedent, it guides others. Its authority flows from reasoning.

A legislature, on the other hand, looks forward, writing general rules for people not before it, and choosing rules a country will live by. Its authority flows not from reasoning, but from representation.

Image: AI



In this context, the draft is legislation in all but name. It binds every court, tribunal and commission in the land, builds a permanent bureaucracy (an apex body, a secretariat in every HC), and lays duties on litigants and advocates, who are party to no case.

None of this resolves a dispute, and all of it prescribes for the future. It sorts every use of AI into two boxes, permitted and forbidden. The boxes are sensible, but sorting is necessarily choosing, and several of these choices are not legal findings, but rather, value judgments. Even if defensible, the question is deeper than the usual complaint that courts cannot legislate. They step into that role often enough, to good effect as well.

The real question here is: whether SC is technically equipped, informationally well-placed, and adequately resourced to engage in the *act* of making such decisions on something as technical as AI?

Take the trade-off at the document's heart. A system can be accurate or explainable, rarely both to the same extent. Ask the most powerful models why, and they cannot answer in any language a person understands.

The draft chooses: it bars opaque systems wherever liberty is at stake and demands a machine explain itself to a layperson. It prefers the model we can follow, over the one that's more often right. But there is no legally right answer – it weighs accuracy against dignity, speed against scrutiny, cost against public confidence.

The ban on risk-scoring tells the same story. Risk-scoring assigns values to potential threats based on their likelihood and severity. Forbidding a machine to predict who will flee or re-offend may cost accuracy. We accept that because we refuse to judge a person by the statistics of their group. Moreover, its prediction is often only history, laundered through code, and handed back as objectivity. A polity can reach that compromise. But a court, deciding cases, should not make such a choice for the whole country through a regulation.

The starkest instance hides in the fine print. Regulation 46(9) bars any private firm from claiming intellectual property in a tool, built on judicial data or public resources, thus deciding who owns a tech, binding companies that may never appear before a judge. In India, intellectual property is the creature of statute, and a committee's regulation quietly allocating IP ownership may be seen as judicial overreach.

Each is a *value judgment* in the costume of procedure. That is the trouble with settling by judicial fiat. Legislation earns its authority from the manner of its making: researched, debated, amended, answerable at the ballot box.

A draft circulated for comment over a few weeks, however expert its authors, carries none of that weight if done without the right resources and informational diversity. A committee of able judges may grasp AI better than most parliamentarians. However, expertise does not in itself mean legitimacy.

There is a deeper irony here. The idea of the draft is human primacy – keep a human in the loop, let the machine advise but never decide. It is right to insist on this. But zoom out, and you see that in writing the rule, the judiciary has taken a question that belongs to the people, and answered it without them.

The legislature, the accountable, representative, resourced, and for many, the appropriate forum, has been left out of the loop. The institution most anxious to keep a human answerable inside every dispute has, in its own rule-making, bypassed the most important human check of all.

The danger, as *Essel* shows, is already here. SC can set rules for its own house and offer a model others may adopt or refuse. What it should hesitate to do is hand down a binding national code for every court in the land.

Because a rule is not legitimate merely because it is wise. It is legitimate because of who made it, how, on the basis of what, and to whom they answer. We should welcome the conversation SC has begun, but be wary of letting it end with the apex court alone.

The writer is a practising Advocate (India) and a Solicitor of the Senior Courts of England and Wales

'Philanthropy can be a force multiplier in govt efforts to deliver better social outcomes'

Key is ensuring the services reach the marginalised, write the heads of Piramal & Gates Foundations

Ajay Piramal & Mark Suzman





Somewhere in a village in East India, a woman has just learned she is pregnant. She already loves her child fiercely. And like expectant mothers everywhere, she wonders what the future holds.

Much of what happens next will depend on systems beyond her family's control: the health worker who checks on her during pregnancy, the Community Health Officer who ensures that medicines are available at the nearest clinic when her child develops a fever, and the local school teacher who notices if her daughter begins to struggle with basic skills.

When those systems work efficiently and effectively, her daughter will have a better chance to be born healthy, grow strong, stay in school, and build a livelihood that allows her to live a fulfilling life.

However, if they fail, she could end up undernourished in childhood, pulled out of school too soon, married before she is ready, or even become a mother while she is still little more than a girl herself.

By almost any measure, India's progress over the last quarter-century has been extraordinary. Hundreds of millions of people have risen out of poverty. Maternal and child deaths have fallen by 83%. Digital public infra has connected hundreds of millions of citizens to banking, benefits, and essential services.

This is the trajectory India intends to accelerate as it looks towards 2047 and the vision of a Viksit Bharat – a fully developed India, 100 years after Independence.

It's an ambitious goal, but India has already proven that progress at this scale is possible. The true test will be whether that progress reaches everyone, everywhere – especially the millions who are facing multiple, mutually reinforcing forms of poverty.

The next chapter of India's development will be about extending this progress even further, and making strong public systems work even better for the people they serve. Philanthropy can add distinctive value to that effort: by helping identify what works, adapt it to local realities, bring together expertise across sectors and geographies, and help promising approaches move faster from one community or state to another.

This would, admittedly, require taking some risks, trying some innovative approaches and solutions, and being okay with the possibility of these not landing perfectly (and making the necessary changes). At the same time, this would also require ability and willingness to partner with existing or ongoing efforts. The goal can never be to replace what govts already do. India spends more than 8% of its GDP on social services, including health, education, and human development. In 2025, Centre and states together spent $304bn. No philanthropic effort could match that scale, nor should it try.

Image: AI



The opportunity before us is to help strengthen the systems already operating at that scale – supporting innovation, institutional capacity, leadership, better use of data, and the frontline workers on whom delivery ultimately depends. Use of tech and AI to create more last-mile consistency in service delivery; supporting regular training, monitoring, and review that enable organic improvements; and building platforms that ensure agile replication of models that show on-ground impact – are some examples of the nature of philanthropic interventions that could be useful.

We have already seen what sustained collaboration can achieve. Take progress in Bihar, where philanthropic foundations partner with the state govt. Over the past two decades, Bihar has raised the share of births taking place in healthcare facilities from less than 30% to more than 90%. Since 2015, maternal mortality has fallen by approximately 42%. In Rajasthan, similar improvements saw the state rise from among the country's lowest performers, to second in national learning outcomes.

None of this happens without strong partnerships across govt, philanthropy, and other stakeholders.

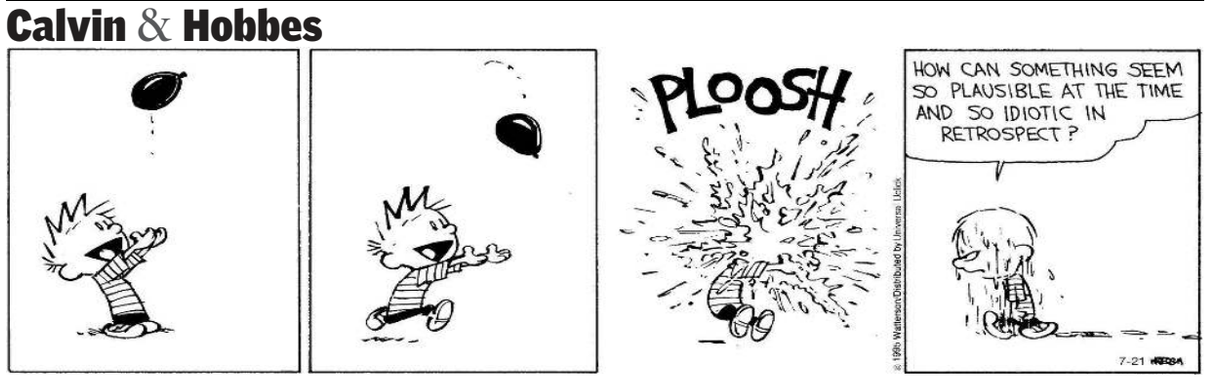
No single organisation brings everything required to tackle multidimensional poverty. Collaboration can combine deep knowledge of local institutions and communities with technical expertise, global evidence, and experience across health, education, gender, and economic opportunity – while bringing govt, civil society, and the private sector together around a shared goal. Rather than creating parallel structures, such collaborative efforts need to work alongside public institutions, helping strengthen their ability to deliver for the people and communities they serve.

The premise is simple: lasting progress depends on strong public institutions, and collaboration can help those institutions turn ambition into better outcomes for more people. In 2047, India will mark 100 years of Independence. Progress over India's first independent century will be measured in stronger infra, more productive industries, and rising incomes.

But it must also be measured in whether a pregnant woman in the most remote areas receives the care she needs. Whether her daughter grows up healthy and educated. Whether that daughter enters adulthood with more choices than the generation before her. A Viksit Bharat will only be real if it includes them.

That is the future that philanthropic collaborations can aspire for, and help build.

Calvin & Hobbes



Sacred*space*



A gender-equal society would be one where the word 'gender' does not exist: where everyone can be themselves.

Gloria Steinem

The Buddha's Teaching Avoids Extremes

The XIV Dalai Lama

Of all the Buddha's teachings, one i find most helpful for understanding reality is the teaching of the two truths: conventional truth and ultimate truth. I have studied and reflected on it since i was a young monk, and i still find something new in it. Put simply, there are two ways of looking at anything: how it appears to us in everyday life, and how it actually exists. We need both.

Conventional truth is the ordinary world we live in: people and houses, work and family, birth and death, happiness and sorrow. At this level, things function. Fire burns. Kindness brings friends; anger brings trouble. Cause and effect operate, so ethics matter. None of this is unreal. But there is a problem. When we look at a person, a flower, or ourselves, they seem to exist from their own side, independent of everything else. That appearance is mistaken.

If we investigate, as great Indian master Nagarjuna did, and search for something existing independently, we cannot find it. Take the self. Is the 'i' this hand? The brain? Mind? The mind is a stream of changing moments. We find no independent 'i' anywhere. Yet here i am, speaking to you.

What is absent is an independently existing self, not the person. This absence is called emptiness, *shunyata*. It is the ultimate truth about the person, who nevertheless exists conventionally. Things depend in different ways: on causes and conditions, on their parts, and on how they are identified and named. This is dependent origination, *pratityasamutpada*. As Nagarjuna says: 'Whatever dependently arises, that is explained to be emptiness.' Because things are dependent, they are empty; because they are empty, they can arise and change.

THE SPEAKING TREE



So, the Buddha's teaching avoids two extremes. One is to believe that things exist, independently. The other is to believe that nothing exists, and nothing matters. The second is more dangerous, because then people conclude that karma and ethics mean nothing. The Middle Way says: things exist, they function, but not in the way they appear.

Think of a rainbow. We see it clearly, with all its colours, yet when we go to touch it, there is nothing to hold. It appears because of sunlight, moisture, and where we stand. Our lives are like that. The two truths are not two separate worlds. They are two aspects of the same reality.

Most of our troubles come from grasping at things as existing in their own right. When someone criticises me, i feel there is a solid 'i' who has been hurt, and a solid enemy who hurt me. Anger arises. But when i examine, i see that both are dependent. The anger loses its strength.

Understanding emptiness does not make us cold. It makes compassion stronger. Because people are not fixed, they can change; someone who acts badly today may act well tomorrow. Because suffering depends on causes that can be overcome, it too can end.

Wisdom and compassion must go together, like the two wings of a bird. With only one wing, a bird cannot fly. You do not need to be a scholar or a monk. When you feel angry, ask: what exactly am i holding on to? When you feel proud, ask: where is this 'i'? But when someone is suffering, do not tell them their pain is empty! At the conventional level, their pain is real. Help them.

This is what i try to practise: clear understanding within, a warm heart towards others.

As told to Rajiv Mehrotra

The Pioneer
NEW DELHI | WEDNESDAY | SEPTEMBER 30, 2026

FTA: A new foundation for a strong Naya Bharat

There is a need for today's youth to reskill and upskill on emerging technologies prevailing across the globe and to learn and experiment in international laboratories. Talented youth can bring back their knowledge and pool of information to our country to build a "Naya Bharat", leading to Viksit Bharat@2047



T SENTHIL SIVA SUBRAMANIAN

A question is always put across the table: Why should India establish strong innovation and business partnerships with global countries?



FTA – Ease of Business Leading to Ease of Living

The answer is as simple as that: India always believes in the visionary mantra "Vasudhaiva Kutumbakam" — the world is one family. Over the past decade/12 years, global countries have built fundamentally strong and vibrant faith and trust in India because of robust policy frameworks like Make in India and Make for India, that roar louder through simple working mechanisms like ease of doing business, ease of culture and ease of innovation and infrastructure, ease of manufacturing leading to ease of trade and, most importantly, ease of skilling.

The classical example is the Unified Payments Interface (UPI), which was widely accepted across the globe, and the pioneering discovery and invention of the COVID vaccine that has added value to humanity across the globe.

Outlook of global countries on India

India has achieved several milestones, as is clearly visible through the chairmanship and presidency of BRICS, QUAD, G20 and, recently, the Asian Productivity Organization, Japan. This shows the active involvement of our nation in extending support and sharing our technology, innovation, infrastructure and industrialisation with global countries. India is eager to learn and adapt to the benchmarks and quality standards of international systems.

Proven examples include the semiconductor manufacturing plants established by Micron, Kaynes and Foxconn, the recent Microsoft Hub centre established in India, and the Boeing Centre of Excellence in Bengaluru.

India's focus on several critical areas, such as critical minerals and defence systems strengthened through collaboration with foreign technologies, and sharing our innovative swadeshi, vocal-for-local products across the globe, stands out as prominent outcomes of relationships with emerging countries.

Global skilling/innovation avenues for youth of India

India's pool of talent is spread across the globe to carry forward the legacy of our Hon'ble Prime Minister of India, Shri Narendra Modi's vision of Viksit Bharat 2047, which is possible through collaborative and cooperative partnerships.

The interest of global industries in establishing Global Capability Centres across PAN India has brought tremendous impact on the employment of talented youth. Global countries have opened fellowships/training programmes for young professionals and experienced personnel, like the Fulbright Scholarship for teaching and research and fellowships for teaching administrators, highlighting a developed India and laying the foundational stones for Viksit Bharat.

International skilling programmes for youth of India

1. The National Productivity Council, under the Ministry of Commerce and Industry, Government of India, in collaboration with the Asian Productivity Organization (APO), in partnership with the Matsuo-Iwasawa Laboratory, University of Tokyo, is facilitating the APO Genuine AI Action (GAIA) Internship Placement Programme initiative to boost the practical application of Artificial Intelligence (AI) capability development and real-time AI applications.

2. IBM is offering a virtual internship training programme for undergraduate students at universities across PAN India, which is a credit-based course and a globally recognised industry-certified programme.

The tangible outcomes of SEMICON 2.0, held in September 2026, have resulted in the starting of a training programme on semiconductor technology from Class 10 onwards.

3. CERN, Switzerland, has invited Indian school students to display their unique product innovations, providing a rare opportunity to interact with the world's scientists.

4. International fellowships, student exchange programmes and calls for nominations include the OPCW Centre for Chemistry and Technology, Netherlands; UNESCO-Hamdan Prize for Teacher Development; University of Tours, France, under the Semester Exchange Programme; DAAD Fellowship; and Commonwealth Fellowship.

Additionally, global countries are inviting our young talents and innovators to highlight their frugal products on international platforms.

The Bharat Innovates 2026 — a breakthrough in the collaboration between India and France, jointly inaugurated and historically launched by Indian Prime Minister Shri Narendra Modi and French President Emmanuel Macron on June 14, 2026, in Nice, France — stands out as a big breakthrough in the trusted partnership and alliances.

BRICS 2026 — A benchmarked partnership with BRICS countries has transformed the picture of India's keenness to accommodate and adapt foreign technologies for our nation.

Global AI Summit, SEMICON 2.0 and many more not only added value to partnerships and collaborations but also showed the strong and trusted commitment of our nation to welcome global countries to establish a strong foothold in India.

This paved the way and benefited our nation by several folds, especially in skilling and talent development across different fields such as semiconductors, quantum, AI, nuclear, aerospace, defence and critical minerals. India has taken a step-by-step and stable approach to reframe our policies, like the historic Foreign Trade Agreement (FTA), that could benefit global countries and result in enhancing our domestic value chain, which leads to enhancement in GDP.

THE BHARAT INNOVATES 2026 — A BREAKTHROUGH IN THE COLLABORATION BETWEEN INDIA AND FRANCE, JOINTLY INAUGURATED AND HISTORICALLY LAUNCHED BY INDIAN PRIME MINISTER SHRI NARENDRA MODI AND FRENCH PRESIDENT EMMANUEL MACRON ON JUNE 14, 2026, IN NICE, FRANCE — STANDS OUT AS A BIG BREAKTHROUGH IN THE TRUSTED PARTNERSHIP AND ALLIANCES

Viksit youth for Naya Bharat

There is a need for today's youth to reskill and upskill on emerging technologies prevailing across the globe and to learn and experiment in international laboratories. Talented youth can bring back their knowledge and pool of information to our country to build a "Naya Bharat6, leading to Viksit Bharat@2047.

Today's youth are keen to learn the techniques and tools, especially the clear visibility of Cadence and Synopsys, Samsung Cohort to build AI integrated with semiconductor chips in India, which could be used to predict critical domains like weather and climate change to prevent disasters, and quantum superconducting processors for drug discovery.

Indian bricks built through cementing skilling, innovation, international infrastructure, business partnerships, culture and consciousness will form the stepping stones for Viksit Bharat@2047.

The writer is an Assistant Professor at the School of Cyber Security and Digital Forensics, Uttar Pradesh State Institute of Forensic Science, Lucknow

How drone policy is building an ecosystem





NEHA SEHRA | REETA SONY

A drone flying over an Indian farm is no longer a symbol of futuristic technology. The Government of India has been actively supporting the use of drones in agriculture, rural livelihoods, and public services. What was once an emerging technology is now finding practical applications nationwide. As of February 2026, India had 38,500+ registered drones, 39,890 DGCA-certified remote pilots, and 244 approved training organisations (PIB, 2026). Drones, or unmanned aerial vehicles (UAVs), are remotely operated aircraft equipped with sensors and other technologies that allow them to collect data and perform tasks from the air. Their ability to provide high-resolution, on-demand information has made them useful in agriculture, where they can support crop monitoring, precision spraying, crop insurance, and the early identification of pests and diseases.

India's drone journey initially began with regulation and safety. In 2018, Drone Regulations 1.0 focused on registration, permission, airspace restrictions, and safety. The Digital Sky platform introduced a 'No permission, no take-off' approach, while operations were initially limited to visual line of sight, daytime operations, and 400 feet. By 2021, the policy approach began to change from regulation to liberalisation. The Government moved from primarily regulating drone operations to creating conditions for their wider adoption. The new framework reduced the regulatory burden on operators and businesses: the number of forms fell from 25 to five, the number of fee categories from 72 to four, and the fee for a remote pilot licence from ₹3,000 to ₹100. The yellow zone around airports was also reduced from 45 km to 12 km, while the requirement for security clearance before operations was removed. These reforms were accompanied by a significant expansion of permissible operating space, with nearly 90 per cent of India's airspace subsequently designated as a green zone for drone operations up to 400 feet.



Taken together, these measures did more than simplify compliance; they lowered entry barriers for entrepreneurs, manufacturers, service providers, and users. The next step was to move beyond regulation and build an indigenous drone ecosystem. The Government began treating drones not only as an aviation technology but also as an emerging industrial sector. The Production Linked Incentive (PLI) Scheme allocated ₹120 crore over three financial years to support domestic manufacturing of drones and drone components, signalling an effort to build indigenous capabilities in the sector. It has attracted ₹595 crore in investment and generated around 2,650 jobs, alongside a reduction in GST on drones to 5 per cent in September 2025. This was complemented by the Drone Certification Scheme, which sought to simplify the certification process for manufacturers, while the Government's import policy restricted imports of complete drones but permitted drone components, encouraging domestic assembly and manufacturing.

Mission Drone Shakti strengthened the ecosystem by promoting drone start-ups and Drone-as-a-Service models. Since 2022, the focus has shifted towards deployment, particularly in agriculture through schemes such as the Sub-Mission on Agricultural Mechanisation and Namo Drone Didi. Between 2023-24 and 2025-26, 2,122 drones were approved for distribution, while over 40,000 Kisan Drone demonstrations covered approximately 41,000 hectares. Drones have also become central to the SVAMITVA programme for mapping rural inhabited areas and preparing property records. By March 2026, drone surveys had been completed in 3.29 lakh of the targeted 3.44 lakh villages, and 3.10 crore property cards had been prepared for 1.87 lakh villages. The impact is extending beyond land records: by August 2026, more than 11,000 loans worth around Rs 1,713 crore had reportedly been disbursed using SVAMITVA property cards.

At the same time, Namo Drone Didi is connecting drone technology with women-led rural entrepreneurship: 1,094 drones had been distributed to women Self-Help Groups by January 2026, including 500 under the scheme, with members trained as drone pilots. These developments show a broader shift in government policy from asking how drones can be regulated to demonstrating how the technology can improve agricultural services, strengthen land governance, and create new livelihood opportunities in rural India.

The experience on the ground also shows why these policy interventions matter. Interviews conducted with drone service providers, farmers, government officials, and academic experts as part of this research indicate significant potential for improving the efficiency of agricultural spraying. One drone operator reported that a UAV could cover a hectare in around 30 minutes. Another stakeholder compared conventional spraying, which could require approximately 100-120 litres of water and take two to two-and-a-half hours, with UAV spraying that used around 10-12 litres and could be completed in 10-15 minutes. These experiences illustrate how drones can make agricultural operations more targeted and time-efficient. Stakeholders also highlighted the importance of government-supported demonstrations and training, while pilots emphasised the need to assess field-level risks such as electrical wires and uneven terrain.

India's drone journey shows what sustained government support can achieve when regulation, industrial policy, and development programmes move together. The GoI has created an enabling policy environment while using drones to address practical challenges in agriculture, land governance, and rural livelihoods. The next challenge is to scale these gains while strengthening training, safety, awareness, and responsible use.

With continued policy support and greater participation from start-ups, farmers, women-led groups, and local institutions, drones can become an important part of India's broader technology and development strategy. The story of India's drones is therefore no longer only about flying machines; it is about building an ecosystem in which technology serves economic opportunity, public services, and inclusive development.

Neha Sehra, Research Associate, CSLG, JNU and Reeta Sony, Associate Professor, CSLG, JNU

Validation culture: A defining measure of success



GURDEEP KAUR

In today's age of online networking, most people, young or old, have developed a new habit of posting personal achievements and developments, no matter if they are big or small; happy or not so happy, on WhatsApp Status, Facebook, Instagram, and other platforms. A young child who clears his examination seeks validation for his success from not just close acquaintances but from online contacts as well. A college student wins a competition, but the celebration seems incomplete until the photographs go online. A young professional gets a new job and, before settling into the new role, updates his profile, announcing the achievement to the world.

The trend is not unusual anymore.

In today's world, life is increasingly being lived in two places — the real world and the virtual. Between the two lies validation. Likes, comments, followers, shares, views, and reactions may appear trivial, but they increasingly influence how people see themselves and measure their achievements. What was once a private moment of happiness now seeks acknowledgement from the public. The desire to be recognised and appreciated is an inherent human nature, of course. It indeed works as a positive reinforcer. A child looks towards a parent after winning a race; a student waits for a teacher's approval; an employee hopes for recognition from a superior. We all look forward to being appreciated and to knowing that our efforts matter. But something has changed. The audience has grown, the applause has become measurable, and comparison has become constant. Social media has transformed validation from an occasional experience into a daily habit.

A photograph/video is uploaded, and the waiting begins. Who liked it? Who did not? Why did a particular friend see the story but not react? Why did someone else receive thousands of likes for what appears to be an ordinary post?

These questions may sound harmless, but repeated often enough, they can affect self-esteem. For a section of young people, validation has become almost addictive. The notification on a phone provides a tiny burst of happiness, while silence results in disappointment. The problem is not the desire to receive appreciation. The problem begins when external approval becomes the yardstick for internal worth.

A person usually finds himself or herself asking, "Do I like this?" but "Will people like this?"

That is a subtle but significant change.

It can be seen in something as simple as photographs. Selection is done from dozens of pictures taken that appear to be "perfect". The image is edited, the caption is carefully chosen and the post is timed. What the world sees is not necessarily false, but it is certainly selective and fabricated to a certain extent. And therein lies the irony: while social media promises connection, it can sometimes encourage young people to curate themselves rather than reveal themselves. The culture of validation also encourages a particularly dangerous habit — comparison.



The addiction to scrolling through updates about the lives, achievements and celebrations of others is at an all-time high. People see seemingly perfect bodies, homes, lifestyles and celebrations, while the viewer, dealing with ordinary problems, can become trapped in the so-called "highlight-reel effect". The comparison is unfair, as the struggles behind these achievements are rarely visible.

Definitely, the old saying, "The grass is always greener on the other side," has never seemed more relevant. Another most visible change introduced by validation culture is the changed meaning of success itself. Traditionally, achievement was associated with qualities such as perseverance, discipline, knowledge, and integrity. Today, visibility often accompanies success, often overshadowing it. A person who quietly builds his/her CV/profitable business may receive less attention than someone who frequently posts about his/her achievements. A talented artist working for years may remain unnoticed while a less accomplished but more visible creator has a huge fan following. This, however, does not mean social media success is meaningless. Far from it. Digital platforms have opened doors that were previously closed.

A young musician from a small Indian town can reach listeners across the country, while students and entrepreneurs can showcase their work and find opportunities online. Activists can also mobilise support for causes within hours.

The same technology that creates pressure can create opportunity by giving voice to those who remain unheard. Social media can build confidence by offering recognition to ideas, creativity and talent. Simply blaming social media, therefore, misses the point. Seeking recognition is natural, and social media is not inherently an enemy.

The real danger lies in confusing recognition with identity. Perhaps the most troubling consequence of the validation culture is the pressure to appear happy. A quiet evening may feel less valuable because it is not "post-worthy". A simple achievement may seem insignificant because someone else has achieved something bigger. Even relationships can become partly performative, with photographs and public declarations becoming symbols of success. In such an environment, "keeping up with the Khuranas/Chhabras" has acquired a digital form. The Khuranas/Chhabras may not even be neighbours anymore. They may be influencers, classmates, celebrities or complete strangers appearing on a screen. Following the trend and mad race for unneeded competition has detrimental impacts. People gradually learn to prioritise appearance over authenticity; public approval can become more important than personal satisfaction; careers may be chosen for prestige rather than passion, and achievements may be pursued for applause rather than purpose. Over time, this can create a society that is increasingly concerned with how things look rather than what they actually are. The consequences, hence, are far beyond impacting self-esteem. There isn't a need to panic; the need to reject technology is not a solution either. The need of the hour is to develop digital maturity. People should be able to enjoy an experience without photographing it, celebrate without announcing it, and create without constantly checking whether others approve.

It is important to understand that a follower count is not a character certificate. A viral post is not necessarily an achievement. A criticism in a comment section does not define a person's worth. And silence from an online audience does not make one's efforts meaningless.

The digital maturity lies in internalising that not everything meaningful needs an audience. And that the applause eventually fades. This indeed would be a liberating force. It is important to understand that life is all about learning and not being defined by success; rather, failure teaches you the toughest lessons of life. It is hard work, perseverance, resilience, and dedication, that add value to our lives and polish our personalities. In the age of social media, remember : not everything visible is valuable, and not everything valuable is visible.

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